SOLICITATION, OFFER AND AWARD

1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)	RATING DOC9	PAGE 1	OF PAGES 73

2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
	HM047623R0012	☐ SEALED BID (IFB) ☒ NEGOTIATED (RFP)		

7. ISSUED BY CODE OCSA

Nat'l Geospatial-Intelligence Agen
ATTN: OCSA/MS: S84-OCSA
7500 GEOINT DRIVE
SPRINGFIELD VA 22150

8. ADDRESS OFFER TO (If other than Item 7)

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION

9. Sealed offers in original and 1 copies for furnishing the supplies or services in the Schedule will be received at the place specified in Item 8, or if hand carried, in the depository located in _____ until 1700 ES *(Hour)* local time _____ *(Date)*

CAUTION: LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE (NO COLLECT CALLS)			C. E-MAIL ADDRESS
		AREA CODE	NUMBER	EXT.	
	Jimmy Ober	571	554-9903		jimmy.c.ober2@coe.ic.gov

11. TABLE OF CONTENTS

(X)	SEC.	DESCRIPTION	PAGE(S)	(X)	SEC.	DESCRIPTION	PAGE(S)
		PART I - THE SCHEDULE				PART II - CONTRACT CLAUSES	
☐	A	SOLICITATION/CONTRACT FORM		☒	I	CONTRACT CLAUSES	17
☐	B	SUPPLIES OR SERVICES AND PRICES/COSTS				PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACH.	
☐	C	DESCRIPTION/SPECS./WORK STATEMENT		☐	J	LIST OF ATTACHMENTS	
☐	D	PACKAGING AND MARKING				PART IV - REPRESENTATIONS AND INSTRUCTIONS	
☐	E	INSPECTION AND ACCEPTANCE		☐	K	REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS	
☐	F	DELIVERIES OR PERFORMANCE					
☐	G	CONTRACT ADMINISTRATION DATA		☐	L	INSTRS., CONDS., AND NOTICES TO OFFERORS	
☐	H	SPECIAL CONTRACT REQUIREMENTS		☐	M	EVALUATION FACTORS FOR AWARD	

OFFER *(Must be fully completed by offeror)*

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within 0 calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT *(See Section I, Clause No. 52.232.8)*	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)

14. ACKNOWLEDGEMENT OF AMENDMENTS *(The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):*	AMENDMENT NO.	DATE	AMENDMENT NO.	DATE

15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*

15B. TELEPHONE NUMBER			15C. CHECK IF REMITTANCE ADDRESS	17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXT.	☐ IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		

AWARD *(To be completed by government)*

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION

22. AUTHORITY FOR USING OTHER THAN FULL AND OPEN COMPETITION:	23. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)*	ITEM
☐ 10 U.S.C. 2304 (c) ( ) ☐ 41 U.S.C. 3304 (a) ( )		

24. ADMINISTERED BY *(If other than Item 7)*	CODE	25. PAYMENT WILL BE MADE BY	CODE

26. NAME OF CONTRACTING OFFICER *(Type or print)*	27. UNITED STATES OF AMERICA *(Signature of Contracting Officer)*	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable

STANDARD FORM 33 (REV. 6/2014)
Prescribed by GSA - FAR (48 CFR) 53.214(c)

SECTION B - Supplies or Services/Prices

B.1 Supplies or Services/Prices

Item Number	Description	Quantity	Unit	Unit Price	Amount
0001	Operations and Sustainment (FFP) (O&M) Award Type: Indefinite-quantity Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)				
0001AA	Operations and Sustainment: MapStack (Not Separately Priced) Award Type: Indefinite-quantity (Not Separately Priced) Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)		EA		
0001AB	Operations and Sustainment: ICGIS Portal (Not Separately Priced) Award Type: Indefinite-quantity (Not Separately Priced) Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)		EA		
0001AC	Operations and Sustainment: Google Earth (Not Separately Priced) Award Type: Indefinite-quantity (Not Separately Priced) Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)		EA		
0001AD	Operations and Sustainment: SOM Discovery (Not Separately Priced) Award Type: Indefinite-quantity (Not Separately Priced) Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)		EA		
0001AE			EA		

Item Number	Description	Quantity	Unit	Unit Price	Amount
	Operations and Sustainment: USFK (Not Separately Priced) Award Type: Indefinite-quantity (Not Separately Priced) Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)				
0001AF	Transition (FFP) (O&M) Award Type: Indefinite-quantity Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)				
0002	Modernization, New Capability Development, Prototypes, Engineering Assessments (Labor Hour) (RDT&E) Award Type: Indefinite-quantity Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)				
0003	Sensors: Operations and Sustainment (Not Separately Priced) Award Type: Indefinite-quantity (Not Separately Priced) Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)		EA		
0003AA	Operations & Sustainment: LSEG (FFP) (O&M) Award Type: Indefinite-quantity Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)				
0003AB	Operations & Sustainment: NSeg (FFP) (O&M) Award Type: Indefinite-quantity Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES				

Item Number	Description	Quantity	Unit	Unit Price	Amount
	(LABOR)				
0003AC	Operations & Sustainment: Enterprise Testing (Labor Hour) (O&M) Award Type: Indefinite-quantity Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)				
0003AD	Operations & Sustainment: Other (FFP) (O&M) Award Type: Indefinite-quantity Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)				
0004	LSeg Sensor (Labor Hour) (RDT&E) Award Type: Indefinite-quantity Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)				
0005	NSeg Sensor (Labor Hour) (RDT&E) Award Type: Indefinite-quantity Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)				
0006	New Sensor (Labor Hour) (RDT&E) Award Type: Indefinite-quantity Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)				
0007	Surge: Operations and Sustainment (FFP) (O&M) Award Type: Indefinite-quantity Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)				
0008					

Item Number	Description	Quantity	Unit	Unit Price	Amount
	Surge: Software Development (FFP) (RDT&E) Award Type: Indefinite-quantity Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)				
0009	Surge: Software Development (Labor Hour) (RDT&E) Award Type: Indefinite-quantity Product/Service Code: DA01 Product/Service Description: IT AND TELECOM - BUSINESS APPLICATION/APPLICATION DEVELOPMENT SUPPORT SERVICES (LABOR)				
0010	Other Direct Costs Award Type: Indefinite-quantity (Not Separately Priced) Product/Service Code: 9999 Product/Service Description: MISCELLANEOUS ITEMS		EA		
0010AA	Other Direct Costs: Material Software (Cost-Reimbursable) (O&M) Award Type: Indefinite-quantity Product/Service Code: 9999 Product/Service Description: MISCELLANEOUS ITEMS				
0010AB	Other Direct Costs: Material Hardware (Cost-Reimbursable) (O&M) Award Type: Indefinite-quantity Product/Service Code: 9999 Product/Service Description: MISCELLANEOUS ITEMS				
0010AC	Other Direct Costs: Travel (Cost-Reimbursable) (O&M) Award Type: Indefinite-quantity Product/Service Code: 9999 Product/Service Description: MISCELLANEOUS ITEMS				
0010AD	Other Direct Costs: Misc/Other (Cost-Reimbursable) (O&M) Award Type: Indefinite-quantity Product/Service Code: 9999 Product/Service Description: MISCELLANEOUS ITEMS				

B.2 ORDERING PERIOD

The ordering period for this single award Indefinite Delivery Indefinite Quantity (IDIQ) contract is for five (5) years. The performance period for task orders issued under the IDIQ contract may continue up to but no more than 364 days beyond the last day of the ordering period.

B.3 MINIMUM GUARANTEED

The IDIQ contract guaranteed minimum amount is $10,000.00. The minimum guaranteed amount will be applied to Task Order 0001. The minimum guaranteed amount is satisfied through the issuance of a single order or a series of orders having a cumulative value equal to or greater than the minimum guarantee.

B.4 CONTRACT MAXIMUM

The contract ceiling of the IDIQ contract for the duration of the ordering period is $191,000,000.00

B.5 CONTRACT TYPE

Strata consists of a hybrid Firm-Fixed Price (FFP), Firm Fixed Price Level of Effort (FFP-LOE), Labor Hour (LH), and Cost Reimbursable (CR) (no fee) contract type.

SECTION C - Description/Specifications

C.1 Description/Specifications

Performance shall be in accordance with the Strata IDIQ PWS and the applicable PWS from each Task Order.

SECTION D - Packaging and Marking

D.1 Packaging and Marking

This section is intentionally left blank.

SECTION E - Inspection and Acceptance

E.1 Inspection and Acceptance

E.2 52.246-3 INSPECTION OF SUPPLIES - COST-REIMBURSEMENT. (MAY 2001)

E.3 52.246-4 INSPECTION OF SERVICES - FIXED-PRICE. (AUG 1996)

E.4 52.246-6 INSPECTION - TIME-AND-MATERIAL AND LABOR-HOUR. (MAY 2001)

E.5 52.246-6 INSPECTION - TIME-AND-MATERIAL AND LABOR-HOUR. (MAY 2001) - ALTERNATE I (APR 1984)

SECTION F - Deliveries or Performance

F.1 Deliveries or Performance

Item/Sub Number	Item Description	Delivery Timeframe

See Section B for Item/Sub Numbers and Descriptions

F.2 52.242-15 STOP-WORK ORDER. (AUG 1989)

SECTION G - Contract Administration Data

G.1 Contract Administration Data

G.2 252.204-7006 BILLING INSTRUCTIONS-COST VOUCHERS. (MAY 2023)

G.3 G.5 BILLING INSTRUCTIONS

a. The Contractor shall submit separate payment invoices covering the amount claimed to be due for services rendered under a contract or each task order issued under an existing IDIQ contract.

b. Invoices will be submitted electronically and shall contain the information required by FAR 52.232-25, Prompt Payment, including the following:

(1) Contract number or Base IDIQ contract number and task order number;

(2) CLIN Description;

(3) CLIN/SLIN charged amount;

(4) Dates services were rendered;

(5) Direct labor hour charges by labor category and rate for services rendered (applicable to Labor Hour task order requirements only);

(6) Other direct costs, if any; and

(7) Cumulative value of billings by CLIN/SLIN to date against the applicable contract or task order.

c. Payment invoices for all contracts or task orders shall be submitted in accordance with the payment schedule, but shall not be submitted more frequently than once a month or by Contracting Officer discretion.

d. Additional billing instructions may be provided under each contract or task order.

e. IDIQ Task Orders. In addition to the above:

(1) By execution of the task order, the Contractor acknowledges that invoice substantiation instruction requirements may differ under each task order, and the Contractor agrees to provide all data required by the Ordering Contracting Officer to substantiate invoices.

(2) Funding and billing instructions will be provided at the task order level.

f. Format. If required by the Contracting Officer, the contractor shall provide an attachment with each invoice that supports the tracking of expenditures by bill payer and by the contractor’s proposed personnel (i.e., designated position number, hours, rate, skill level, job title, and other fields of information as may be determined at a later date). If applicable, a template for the invoice attachment will be provided by the Government.

G.4 5X252.201.602-2-91 CONTRACTING OFFICER'S REPRESENTATIVE (COR) (JAN 2004)

The following contracting officer's representative(s) (COR) are appointed to this contract: (use for Awards)

PRIMARY:

[]

[]

ALTERNATE:

[]

[]

For ordering contracts, the COR(s) will be identified on each delivery/task order.

The COR(s) has a written designation memorandum on file with the procurement office. This memorandum, as directed by DFARs 252.201-7000(b), specifies the extent of the COR's authority to act on behalf of the contracting officer. This authority cannot be re-delegated to any other person. The alternate COR acts in behalf of the primary COR in absence of the primary COR and is appointed through a separate memorandum.

The primary responsibilities of CORs are:

1) Technical Liaison. Oversees the contractor's technical effort to ensure that performance is in strict accordance with the terms and conditions of the contract. Is the primary interface between the contractor and the contracting officer on matters pertaining to the contractor's technical performance. Answers technical questions, furnishes technical instruction and guidance to the contractor relating to contract specifications, and any other instructions of a technical nature necessary to perform the work as specified in the contract. CORs are not to tell the Contractor how to perform, but only what is required of a technical nature. If doubt exists as to whether information to be furnished falls within the scope of the contract, the COR is to coordinate action with the contracting officer prior to transmitting the information to the Contractor. Promptly responds to contracting officer queries for technical information and directs the contractor to submit requests for change, deviation or waiver in writing to the contracting officer. Keeps the contracting officer informed regarding communications with the contractor in order to prevent possible misunderstandings or situations that could affect contract terms and conditions and become the basis for future claims against the Government.

2) Monitoring contractor performance. Ensures delivery schedules are adhered to and provides quality assurance. Provides status to the contracting officer and other program personnel to ensure compliance with the technical requirements of the contract. If performance is not proceeding satisfactorily, or if problems are anticipated, promptly notifies the contracting officer and may provide a recommended technical course of correction action. Reviews and approves progress reports, technical reports, financial/management reports and other items requiring approval. Notifies the contracting officer if such reports or items should be rejected, stating the basis for rejection.

3) Technical Evaluation of Contractor Proposal. Evaluates contractor proposals for modifications and provides a written technical evaluation, to include price or cost elements, to the contracting officer.

4) Reviewing and Approving Payments and Acceptance. Reviews invoices and progress payments for accuracy and appropriateness and reports any discrepancies and provides concurrence (or non-concurrence) to the Contracting Officer. Approves payments and accepts work on the appropriate forms for services performed or supplies delivered.

5) Administration of Government Property. Submits to the contracting officer and property specialist a written evaluation of the disposition of any material/property furnished by the Government that is accountable to the contract.

6) Security. Coordinates all security requirements of the contract with the contractor and the agency security office, to include DD254s and contractor access to NGA networks. Ensures AIS accounts of departing NGA contractor on-

site personnel are cancelled expeditiously. Keeps track of any classified documents or data provided and ensures return or destruction upon completion of the contract.

7) Maintenance of Files. Keeps a file of all records related to the contract to include, but not limited to, the contract, e-mail correspondence, formal written correspondence, reports, receiving and acceptance reports/forms, technical evaluations, trip reports, meeting notes, status reports, past performance reports, government property reports and closeout records.

8) Administration of On-Site contractor personnel information. Maintains information on contractors, prime and subs, performing on-site at NGA facilities. Coordinates with the contractors and the Human Resource Office (HR) all contractor data changes, to include arrival and departure, names, physical location(s), NGA organization code of office responsible for contractor-occupied-space, and employer name, address and phone. Approves badging of contractors upon contractor completion and submittal of Contractor Data Input Record Form to HR and a standardized NGA non-disclosure statement.

CORs shall not direct the contractor in any manner that would be of the type of supervision or control that converts an individual who is an independent Contractor (such as a contractor employee) into a Government employee.

Notwithstanding the delegated duties listed herein, the COR does not possess the authority of a contracting officer and, therefore, shall not alter the terms and conditions of the contract in any way, to include any commitments or changes that will affect cost, price, quality, quantity, delivery, or any other term or condition of the contract. The contracting officer is the only official with the authority to enter into or modify contractual agreements or commitments. Unauthorized acts could result in personal liability.

The duties and responsibilities set forth herein are not intended to be all-inclusive. The contracting officer may delegate additional functions as deemed necessary.

COR appointment and termination on a specific contract shall be effective upon contract/order award or execution of a modification to the contract by the contracting officer.

(End of Clause)

G.5 5X52.232-9000 SUBMISSION OF INVOICE-FEDERAL PAYMENT CENTER (FPC) (OCT 2017) - FOR USE IN CONTRACTS PAID BY THE FPC VENDOR PAY OFFICE

(a) The contractor shall prepare each invoice in accordance with the Prompt Payment Act and email one copy of the invoice to the DOD/FPC Scott AFB, IL at FMFOINSP@nga.mil. The DOD/FPC at Scott AFB, IL requires an email copy, but will accept a hard copy that is mailed to Federal Payment Center, P.O. Box 25767, Scott AFB, IL 62225.

(b) At the same time of submission of the invoice to the FPC vendor pay office, the contractor shall fax or email one copy to [], and one copy to []. The contractor shall ensure that the invoice submitted to the payment office is the same invoice that is submitted to the CO, the COR, and the designated DCAA office when clause 5X252.242-9000 is used, without alteration.

(c) Upon receipt of the invoice, the COR will complete the receiving report and submit via the RRPT database tool. A copy of the completed receiving report shall also be provided to the Contracting Officer shown on the face of this contract/order.

(d) Contractors wishing to check the payment status of their vouchers may do so by calling FPC Vendor Support at 636-321-5251. In addition, questions may be directed to the Contracting Officer's Representative (COR). In the absence of a COR, contact the Procurement Contracting Officer (PCO), whose name and contact information appear on the face page of this contract/order.

(End of Clause)

G.6 5X252.242-9000 APPROVING PAYMENTS (COST REIMBURSEMENT, TIME AND MATERIALS, AND LABOR HOUR CONTRACTS) (MAR 2023)

(a) Interim Voucher Receipt and Approval in accordance with DFARS 242.803(b)(i)(A) and (B), the contractor shall prepare an original and three (3) copies of each voucher in accordance with the applicable Prompt Payment Clause (see 5X52.232-9000). The remaining copies of the vouchers shall be submitted to the Contracting Officer shown on page 1 of the contract/modification and the Contracting Officer's Representative shown in Section G.

(b) In the event discrepancies are discovered by the Contracting Officer/Contracting Officer's Representative before payment of the voucher, the Contracting Officer/Contracting Officer's Representative will notify the DCAA auditor, who will coordinate resolution of the discrepancies and secure a corrected voucher as deemed necessary. Copies of the corrected voucher will be submitted to the Contracting Officer/Contracting Officer's Representative. If an offset is required due to a discrepancy on a paid voucher, then the contractor will show the offset on a subsequent voucher.

(c) Completion/Final Voucher: The contractor shall submit final vouchers and closing documents to DCAA and the Contracting Officer. After DCAA review, the Contracting Officer approves all completion/final vouchers(s) and sends to the paying office.

(End of Clause)

G.7.1 DFARS PGI 204.7108 Payment Instructions

See: https://www.acq.osd.mil/dpap/dars/pgi/pgi_htm/current/PGI204_71.htm#payment_instructions

SECTION H - Special Contract Requirements

H.1 DORMANT ACCOUNT REVIEW-QUARTERLY PARTICIPATION

The Dormant Account Review, Quarterly (DAR-Q) process, is the Department of Defense (DoD) requirement to increase the Department's and NGA's ability to use available appropriations before they expire and ensure remaining open obligations are valid and liquidated before the cancellation of the appropriation. NGA disseminates and receives DAR-Q information to and from NGA's Industry Partners using the National Reconnaissance Office (NRO) unclassified Acquisition Research Center (ARC) website. NGA provides consolidated lists of lines of accounting for validation, of which contractor participation is mandatory.
Contractors holding NGA contracts and/or orders are required to support the NGA DAR-Q process. Each contractor must select two points of contact (POCs) to establish and maintain active accounts on the unclassified NRO ARC at https://acq.westfields.net.
Contractor POCs use the following information to register:
1.) Full name;
2.) SSN (Optional);
3.) Unclassified email address;
4.) DUNS number; and
5.) Unclassified telephone number.
From the https://acq.westfields.net homepage, click on "Register" in the upper-right-hand corner of the page; follow the instructions, and enter the requested data. Although not required for DAR-Q compliance, POCs possessing a classified email account may enter that information during registration to also create a classified ARC account.
POCs should be aware that account activation requires the registered user to validate the account by email within 24 hours of registration. Questions or problems related to the website or the registration process should be directed to the unclassified Acquisition Center of Excellence (ACE) Help IT Desk at 703-230-6300 or acehelpdesk@westfields.net.
NGA will conduct quarterly DAR-Q reviews in accordance with the DoD Financial Management Regulations (FMR). Contractors with dormant Unliquidated Obligations appearing on any specific quarterly DAR-Q review will be notified via the NRO ARC. Once notified, contractor POCs are required to validate and upload the contractors' responses, including supporting documentation, to the NRO ARC by the due date set forth in the relevant timelines

outlined by NGA and the FMR.

H.2 Special Contract Requirements

H.3 5X52.09.507-9000 ORGANIZATIONAL CONFLICT OF INTEREST (MAR 2023)

(a) The term "organizational conflict of interest" means that because of other activities or relationships with other persons, a person is unable to or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. The term "person" includes a business organization.

(b) The principals of organizational conflict of interest and descriptions thereof are set forth at FAR Subpart 9.5.

(c) If the offeror/contractor is aware of a potential organizational conflict of interest (OCI), as defined at paragraph (a) above, with respect to this procurement, the offeror shall make immediate and full disclosure in writing to the Contracting Officer.

(d) If in the performance of this contract the contractor discovers a potential organizational conflict of interest with respect to the contract, it shall make an immediate and full disclosure in writing to the Contracting Officer, which shall include a description of the actions the Contractor has taken or proposes to take to avoid, eliminate, or neutralize the conflict. In the event that the Contractor does not disclose a known potential conflict to the Contracting Officer, the Government may terminate the contract for default.

(e) If the Contractor is directed by authorized Government personnel by written tasks or verbal directions (in program review or otherwise), to perform service which the Contractor believes to constitute a potential organizational conflict of interest, the contractor is required to notify the Contracting Officer in writing of the nature of the conflict within ten (10) days after receipt of the Government directive. The Contracting Officer has the sole responsibility for determining whether a conflict does, in fact, exist. No effort shall be expended toward the performance of the services in question until this determination has been made or unless otherwise directed by the Contracting Officer.

(f) The Government has the unilateral right to waive one or more of the provisions of FAR Subpart 9.5 and this clause, on a case-by-case basis, under FAR Part 9.503.

(g) Any restraints negotiated in response to FAR Part 9.507-2 as a condition of award due to an organizational conflict of interest, shall be incorporated into the instant contract or Delivery/Task Order(s) as appropriate. These restraints will have duration of not more than [] years after completion of the contract effort.

(h) The Contractor shall insert Paragraphs (a) through (g) of this clause in all subcontracts.

(End of Clause)

H.4 5X52.209-9003 PROTECTION OF INFORMATION AND NONDISCLOSURE AGREEMENTS (JUN 2009)

(1) Protected Information and Computer Software means, unless specifically excluded by paragraph (2) below, all information and computer software, in any form or media, that in the course of performing work under this contract are disclosed to the Contractor, its subcontractors, or their employees, or to which those persons otherwise are given access to, by (i) NGA, (ii) other government agencies, (iii) foreign governments or (iv) other contractors while directly supporting NGA, which is accompanied by written legends identifying use or disclosure restrictions or disclosed under circumstances that the Contractor knows are subject to use or disclosure restrictions established in writing by the Government.

(2) Protected Information and Computer Software does not include information that:

(i) Has been released to the general public through no action of the undersigned in breach of this agreement or through no action of any other party in breach of any other obligation of confidentiality owing to the Government or the owner of the protected information or computer software;

(ii) Has been lawfully obtained by the recipient outside the course of the performance of this contract;

(iii) Has been properly licensed or provided directly by the owner (or other authorized source) of the information or computer software to the recipient to the extent so licensed or provided;

(iv) Is owned by the recipient or was developed independently of the disclosure hereunder;

or

(v) Has been disclosed to the recipient by the Government with explicit authorization to use or disclose the information for another purpose, to the extent so authorized.

(b) Use and disclosure restrictions. The Contractor shall use and disclose Protected Information and Computer Software only as necessary for the performance of the requirements of this contract. Protected Information and Computer Software may not be used or disclosed for any other purpose, including bid or proposal preparation or business marketing, without the written approval of the Contracting Officer. Furthermore, unless otherwise directed by the Contracting Officer, the Contractor shall comply with all restrictions set forth in any legends, licenses or instructions provided to the Contractor or accompanying Protected Information and Computer Software or other written directives of the Government known to the Contractor. The use and disclosure obligations imposed by this paragraph shall expire as follows:

(1) There shall be no expiration date for the following Protected Information and Computer Software:

(i) Technical data or computer software containing Limited Rights, Restricted Rights, Government Purpose Rights, Special License Rights, or Unlimited Rights legends;

(ii) information or software marked Limited Distribution (LIMDIS);

(iii) information or software marked Source Selection Information;

(iv) contract proposal information marked pursuant to FAR 52.215-1(e) limiting its use for proposal evaluation purposes only;

(v) information and computer software marked Contractor Proprietary or a similar legend;

(vi) data known by the Contractor to be protected by the Privacy Act; and

(vii) information and software marked Controlled Unclassified Information (CUI) or For Official Use Only (FOUO).

(2) For other information or software accompanied at time of disclosure by a written legend identifying use or disclosure restriction time periods, the expiration date shall be as stated in or derived from the legend.

(3) For all other Protected Information and Computer Software, the expiration date shall be 3 years from the date the information or software is first disclosed to the Contractor.

Notwithstanding the above obligations, the Contractor is not in breach of this agreement if the Contractor uses or discloses Protected Information and Computer Software in response to an order of a court or administrative body of competent jurisdiction, but only to the extent permitted by that authority and only if the Contractor gives the

Contracting Officer, to the extent practical, notice of the tribunal's order before the use or disclosure is made that allows NGA a reasonable time to object to the order.

(c) Unauthorized Use or Disclosure. The Contractor shall immediately notify the Contracting Officer of any unauthorized use or disclosure known by the Contractor of Protected Information and Computer Software in violation of the obligations contained in this clause.

(d) Disposition. At the conclusion of performance of work under this contract, the Contractor shall immediately return to the Government all Protected Information and Computer Software in its possession. Furthermore, if an employee of the Contractor who has had access to Protected Information and Computer Software is terminated or reassigned and thus is no longer performing work under this contract, the Contractor shall immediately return all Protected Information and Computer Software in the employee's possession. Moreover, if a Contractor's employee is dedicated to support a specific NGA Office or Directorate or NGA program under this contract, but is subsequently reassigned to support another NGA Office or Directorate or NGA program under this contract, the Contractor shall immediately return all Protected Information or Computer Software in the employee's possession previously furnished by the prior NGA Office or Directorate or NGA program. In lieu of returning Protected Information and Computer Software, the Contracting Officer or Contracting Officer's representative may authorize the destruction of the information or the transfer of the information to another employee of the Contractor working under the contract. Finally, this clause shall not be interpreted as preventing the Contractor from retaining records required by statutes or other clauses of this contract, such as FAR 52.215-2 Audit and Records--Negotiations.

(e) Third party beneficiaries. This clause is executed for the benefit of the Government and the owners of Protected Information and Computer Software. The Government and the owners of Protected Information and Computer Software (and their delegatees, successors and assignees) are third party beneficiaries of the obligations contained in this clause who, in addition to any other legal rights they may have, are intended to have the rights of direct action against the Contractor or any person to whom the Contractor has disclosed or released Protected Information and Computer Software, to seek damages from any breach of this clause, or to otherwise enforce this clause.

(f) Duration. The above obligations imposed by this clause shall survive the termination or completion of this contract.

(g) Classified Information. This clause is in addition to and in no manner abrogates requirements, obligations or remedies regarding the protection of classified information and does not supersede the requirements of any laws, regulations, other directives or nondisclosure agreements regarding classified information.

(h) Other Restrictions. This agreement does not abrogate any other obligations currently placed upon the Contractor or which may be imposed upon the Contractor in the future by the Government or other persons; or remedies afforded those persons regarding those obligations.

(i) Nondisclosure agreements. The Contractor shall require and ensure that each of its employees who may receive or be given access to Protected Information and Computer Software signs the nondisclosure agreement provided by attachment to this contract prior to the employee performing work under this contract covered by the nondisclosure agreement. The Contractor shall maintain copies of signed nondisclosure agreements for a period of at least three years after final payment under this contract. At the direction of the Contracting Officer, the Contractor shall make those agreements available for inspection by the Contracting Officer and will furnish the Contracting Officer copies of those agreements at no additional cost to the Government if requested by the Contracting Officer.

(j) The Contractor shall include the substance of this clause in all subcontracts under this contract in which subcontractors may be disclosed or granted access to Protected Information and Computer Software.

(End of Clause)

H.5 5X52.242-9001 OBSERVANCE OF LEGAL HOLIDAYS, DELAYED ARRIVAL OR EARLY RELEASE OF FEDERAL EMPLOYEES. (MAR 2022)

(a) The National Geospatial-Intelligence Agency observes the following days as Federal holidays:

New Year's Day - January 1st

Martin Luther King's Birthday - 3rd Monday in January

Washington's Birthday - 3rd Monday in February

Memorial Day - Last Monday in May

Juneteenth Independence Day - June 19th

Independence Day - July 4th

Labor Day - 1st Monday in September

Columbus Day - 2nd Monday in October

Veterans Day - November 11th

Thanksgiving Day - 4th Thursday in November

Christmas Day - December 25th

Inauguration Day - January 20th of each fourth year after 1965

Washington DC - Metropolitan Area only

Any other day designated by Federal law, Executive Order, or Presidential Proclamation.

(b) Federal law (5 U.S.C. 6103) establishes the public holidays listed. Please note that most contractors work a Monday through Friday schedule. For these contractor employees, when a holiday falls on a non-workday -- Saturday or Sunday -- the holiday usually is observed on Monday (if the holiday falls on Sunday) or Friday (if the holiday falls on Saturday).

(c) Contractor personnel are not prohibited from performing work on a holiday, unless the labor category is not authorized to work as negotiated in the contract. The following list identifies the labor categories that are not authorized to perform work on a holiday based on negotiated terms. Labor categories included on this list are expected to complete their workday as scheduled when NGA government employees are authorized early release prior to a holiday (e.g. two hour early release) or other such benefit that applies to NGA government employees only.

LABOR CATEGORY

[]

(d)If the Contractor's personnel work on a holiday, no form of holiday, premium or differential compensation is an allowable cost under the Contract unless another clause in the Contract explicitly authorizes work on holidays and for the time period covered by the special compensation.

(e) When Federal employees working in an NGA facility are authorized a delayed arrival, released early or excused in bulk from work, the Contractor may authorize its personnel whose normal workplace is in that facility: (1) to continue working in the facility (unless prohibited by the NGA Facility Site Manager); (2) to work at alternate work

locations; or (3) to refrain from performing services during that period of time; as long as any work performed does not result in the incurrence of any form of holiday, premium or differential compensation, or additional costs for alternate work locations to be reimbursed by the Government as a direct or non-nominal indirect cost. Such costs are not allowable under the Contract. Further, when services are not performed (e.g., a contractor employee takes leave) the non-working hours are not allowable as a direct charge under the Contract.

(End of clause)

H.6 5X52.242-9002 GOVERNMENT SHUTDOWN, FURLOUGH OF GOVERNMENT PERSONNEL AND CLOSURE OF NGA FACILITIES (NOV 2018)

(a) An NGA facility may be closed down for all or a portion of a business day(s) as a result of:

1) Failure of Congress to appropriate funds, resulting in a government shutdown and furlough of government personnel;

2) Actual Continuity of Operations (COOP) or COOP training exercises;

3) Severe weather;

4) Unplanned events; or

5) Any other reason deemed appropriate by the D/NGA.

(b) In specific reference to (a) 1, and notwithstanding any other provision of the contract, contractors should continue to perform work in accordance with the terms of the contract, provided funding is available on the contract. Unless otherwise directed by the Contracting Officer, no work shall continue in the absence of available funding on the contract. A Contracting Officer will issue specific stop-work notices to those contractors who must stop work due to the government shutdown. Once a stop-work notice is received, contractors should implement an orderly shutdown (e.g., secure files, make preparations to preserve work, etc…). Unless otherwise directed by the Contracting Officer, the stop-work order will automatically lift when Congress appropriates funds and work performance should resume provided there is funding on the contract.

(c) In specific reference to (a)2 through (a)5, the Contractor's personnel may be authorized by the cognizant Contracting Officer or Contracting Officer's Representative (COR) to work during a Government shutdown or closure as described in this clause, as long as any work performed does not result in the incurrence of any form of holiday, premium or differential compensation or additional costs for alternate work locations to be reimbursed by the Government as a direct or non-nominal indirect cost. Unless otherwise explicitly authorized by another clause, such costs are not allowable under the Contract. Further, when services are not performed (e.g., a contractor employee takes leave) the non-working hours are not allowable as a direct charge under the Contract.

(End of clause)

H.20 KEY PERSONNEL POSITIONS

Certain skilled, experienced professional and/or technical personnel positions are essential for successful contractor performance of the work under this contract and are identified as key personnel in the IDIQ PWS. Key personnel identified for each specific task order are expected to remain supporting the program for at least 180 calendar days after award of the task order. In the event of an individual's sudden illness, death, or termination of employment, the Contractor shall promptly notify the Contracting Officer (CO) and Contracting Officer's Representative (COR) and provide the information outlined in the subsequent paragraph for the proposed replacement.

The Contractor shall obtain approval for the substitution of key personnel. Substitutions of key personnel shall be made in accordance with the following procedures. The Contractor shall provide written notification to the CO and

COR at least 30 calendar days prior to replacing any key personnel from performance. In this written notification, the Contractor shall submit the resume of the proposed replacement to the Government for approval. The Government requires the replacement to meet or exceed the experience and skills/qualifications identified for the key personnel positions. Any approved replacement key personnel are expected to remain supporting the program for at least 180 calendar days (unless the start date is less than 180 calendar days from the end of the task order period of performance, in which case the individual is expected to remain supporting the effort through the end of the task order). The Government reserves the right to request a resume for any of the key personnel at any point during the task order.

(End of Clause)

H.22 UNCLASSIFIED TELECOMMUTING

Telecommuting (ad hoc) may be allowable, but shall not commence until it has been approved by the Contracting Officer's Representative (COR) and Contracting Officer (CO), with a copy of the approved agreement provided to the COR. Regardless of telework allowability, the Contractor shall be responsible for performing all classified requirements of the contract. Any telework that takes place without written approval from the CO and COR will be considered unallowable.

All contractor employees and/or subcontractor employees identified for telecommuting must complete the annual Computer Security Awareness Training requirement and submit a request for telecommuting through the designated COR. Conditions for ad hoc telecommuting include circumstances such as inclement weather, office closures, etc. Contractor and/or subcontractor employees shall not telecommute on Federal holidays, other non-work days, or in the case of a pandemic or other emergency or unforeseen situation such as an epidemic, natural disaster, early closing or delayed opening of the Government, as well as a Government shutdown without prior written approval of the COR and CO.

The Contractor shall maintain adherence to proper Security classification rules and standards while operating in a telework environment. Oversight of telecommuting employees shall be in accordance with contractual requirements and company policy, which will be managed by the Contractor. Company telecommuting policies shall ensure that telecommuting worksites do not include public locations (such as libraries, food establishments, parks, or other public locations).

(End of Clause)

H.23 PROHIBITION AGAINST RECRUITING IN NGA FACILITIES

(a) The contractor shall inform its employees and subcontractors that they are not permitted to engage in employment recruitment while in any facility controlled by NGA or to use NGA communications systems (e.g. cable and computer systems) and nonpublic information in connection with recruitment without written approval of the Contracting Officer. For purposes of this clause, recruitment refers to discussions of future employment with the contractor or subcontractor initiated by an employee of the contractor or subcontractor; distribution of employment forms or other employment paperwork, or similar activities directed towards obtaining the employment of an NGA employee by the contractor or subcontractor. Any contractor or subcontractor employee who violates this policy may be denied further access to NGA facilities and systems. The contractor shall emphasize this fact to its employees and subcontractors and shall include the substance of this clause in each subcontract issued under this contract.

(b) Exclusion under the circumstances described in paragraph (a) of this clause shall not relieve the contractor from full performance of the requirements of this contract, nor will it provide the basis for any claims against the Government.

H.25 Prohibition Regarding Exclusive Teaming Arrangements

(a) Definition: Exclusive teaming arrangements means an agreement between two or more companies in writing or otherwise:

1. To team together to pursue a Government contract, in prime contractor-subcontractor relationship or as a joint venture, and not team with any other competitors for that contract; or
2. That precludes a potential offeror from competing for a Government contract.

(b) Prohibition: Offerors are prohibited from entering into any exclusive teaming arrangements associated with this solicitation or resultant contract. The Government has determined that such arrangements unduly limit competition and will prohibit Offerors for consideration.

SECTION I - Contract Clauses

I.1 Contract Clauses

I.2 52.202-1 DEFINITIONS. (JUN 2020)

I.3 52.203-3 GRATUITIES. (APR 1984)

I.4 52.203-5 COVENANT AGAINST CONTINGENT FEES. (MAY 2014)

I.5 52.203-6 RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT. (JUN 2020)

I.6 52.203-7 ANTI-KICKBACK PROCEDURES. (JUN 2020)

I.7 52.203-8 CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY. (MAY 2014)

I.8 52.203-10 PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY. (MAY 2014)

I.9 52.203-12 LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS. (JUN 2020)

I.10 52.203-13 CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT. (NOV 2021)

I.11 52.203-16 PREVENTING PERSONAL CONFLICTS OF INTEREST. (JUN 2020)

I.12 52.203-17 CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS AND REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS. (JUN 2020)

I.13 52.203-19 PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS. (JAN 2017)

I.14 52.204-2 SECURITY REQUIREMENTS. (MAR 2021)

I.15 52.204-4 PRINTED OR COPIED DOUBLE-SIDED ON POSTCONSUMER FIBER CONTENT PAPER. (MAY 2011)

I.16 52.204-9 PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL. (JAN 2011)

I.17 52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE. (OCT 2018)

I.18 52.204-18 COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE. (AUG 2020)

I.19 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS. (DEC 2014)

I.20 52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS. (NOV 2021)

I.21 52.204-23 PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES. (NOV 2021)

I.22 52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT. (NOV 2021)

I.23 52.204-27 PROHIBITION ON A BYTEDANCE COVERED APPLICATION. (JUN 2023)

I.24 52.209-6 PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT. (NOV 2021)

I.25 52.209-9 UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS. (OCT 2018)

I.26 52.209-10 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS. (NOV 2015)

I.27 52.210-1 MARKET RESEARCH. (NOV 2021)

I.28 52.215-2 AUDIT AND RECORDS - NEGOTIATION. (JUN 2020)

I.29 52.215-8 ORDER OF PRECEDENCE - UNIFORM CONTRACT FORMAT. (OCT 1997)

I.30 52.215-11 PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA - MODIFICATIONS. (JUN 2020)

I.31 52.215-13 SUBCONTRACTOR CERTIFIED COST OR PRICING DATA - MODIFICATIONS. (JUN 2020)

I.32 52.215-21 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA - MODIFICATIONS. (NOV 2021)

I.33 52.215-23 LIMITATIONS ON PASS-THROUGH CHARGES. (JUN 2020)

I.34 52.216-18 ORDERING. (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 1 Apr 2024 through 31 Mar 2029.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

I.35 52.216-19 ORDER LIMITATIONS. (OCT 1995)

(a) *Minimum order*. When the Government requires supplies or services covered by this contract in an amount of less than $25,000.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order*. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of $140,000,000.00;

(2) Any order for a combination of items in excess of $140,000,000.00; or

(3) A series of orders from the same ordering office within 5 days that together call for quantities exceeding the limitation in subparagraph (b)(1) or (2) above.

(c) If this is a requirements contract (*i.e*., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.

(d) Notwithstanding paragraphs (b) and (c) above, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 2 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

I.36 52.216-22 INDEFINITE QUANTITY. (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the *maximum.* The Government shall order at least the quantity of supplies or services designated in the Schedule as the *minimum.*

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed

during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after 364 days past the last day of the ordering period.

(End of clause)

I.37 52.217-8 OPTION TO EXTEND SERVICES. (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of clause)

I.38 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT. (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of clause)

I.39 52.219-4 NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS. (OCT 2022)

(a) *Evaluation preference*. (1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(2) The factor of 10 percent shall be applied on a line item basis or to any group of items on which award may be made. Other evaluation factors described in the solicitation shall be applied before application of the factor.

(3) When the two highest rated offerors are a HUBZone small business concern and a large business, and the evaluated offer of the HUBZone small business concern is equal to the evaluated offer of the large business after considering the price evaluation preference, award will be made to the HUBZone small business concern.

(b) *Waiver of evaluation preference*. A HUBZone small business concern may elect to waive the evaluation preference, in which case the factor will be added to its offer for evaluation purposes.

[ ] Offeror elects to waive the evaluation preference.

(c) *Joint venture*. A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of clause)

I.40 52.219-8 UTILIZATION OF SMALL BUSINESS CONCERNS. (OCT 2022)

I.41 52.219-9 SMALL BUSINESS SUBCONTRACTING PLAN. (OCT 2022) - ALTERNATE III (JUN 2020)

I.42 52.219-16 LIQUIDATED DAMAGES - SUBCONTRACTING PLAN. (SEP 2021)

I.43 52.219-28 POST-AWARD SMALL BUSINESS PROGRAM REREPRESENTATION. (MAR 2023)

(1) The Contractor represents that it [ ] is, [ ] is not a small business concern under NAICS Code [ ] assigned to contract number [ ].

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it [ ] is, [ ] is not, a small disadvantaged business concern as defined in 13 CFR 124.1002.

(3) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it [ ] is, [ ] is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture:* [ ] .]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture:* [ ] .]

(6) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it [ ] is, [ ] is not a veteran-owned small business concern.

(7) *[Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.]* The Contractor represents that it [ ] is, [ ] is not a service-disabled veteran-owned small business concern.

(i) It [ ] is, [ ] is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It [ ] is, [ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: [ ]. Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[Contractor to sign and date and insert authorized signer's name and title.]

I.44 52.222-3 CONVICT LABOR. (JUN 2003)

I.45 52.222-19 CHILD LABOR - COOPERATION WITH AUTHORITIES AND REMEDIES. (DEC 2022)

I.46 52.222-21 PROHIBITION OF SEGREGATED FACILITIES. (APR 2015)

I.47 52.222-26 EQUAL OPPORTUNITY. (SEP 2016)

I.48 52.222-35 EQUAL OPPORTUNITY FOR VETERANS. (JUN 2020)

I.49 52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES. (JUN 2020)

I.50 52.222-37 EMPLOYMENT REPORTS ON VETERANS. (JUN 2020)

I.51 52.222-40 NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT. (DEC 2010)

I.52 52.222-50 COMBATING TRAFFICKING IN PERSONS. (NOV 2021)

I.53 52.222-54 EMPLOYMENT ELIGIBILITY VERIFICATION. (MAY 2022)

I.54 52.223-5 POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION. (MAY 2011)

I.55 52.223-6 DRUG-FREE WORKPLACE. (MAY 2001)

I.56 52.223-10 WASTE REDUCTION PROGRAM. (MAY 2011)

I.57 52.223-18 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING. (JUN 2020)

I.58 52.224-3 PRIVACY TRAINING. (JAN 2017)

I.59 52.224-3 PRIVACY TRAINING. (JAN 2017) - ALTERNATE I (JAN 2017)

I.60 52.225-13 RESTRICTIONS ON CERTAIN FOREIGN PURCHASES. (FEB 2021)

I.61 52.227-1 AUTHORIZATION AND CONSENT. (JUN 2020)

I.62 52.227-1 AUTHORIZATION AND CONSENT. (JUN 2020) -- ALTERNATE I (APR 1984)

I.63 52.227-2 NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT. (JUN 2020)

I.64 52.227-3 PATENT INDEMNITY. (APR 1984) - ALTERNATE I (APR 1984)

(a) The Contractor shall indemnify the Government and its officers, agents, and employees against liability, including costs, for infringement of any United States patent (except a patent issued upon an application that is now or may hereafter be withheld from issue pursuant to a Secrecy Order under 35 U.S.C. 181) arising out of the manufacture or delivery of supplies, the performance of services, or the construction, alteration, modification, or repair of real property (hereinafter referred to as *construction work*) under this contract, or out of the use or disposal by or for the account of the Government of such supplies or construction work.

(b) This indemnity shall not apply unless the Contractor shall have been informed as soon as practicable by the Government of the suit or action alleging such infringement and shall have been given such opportunity as is afforded by applicable laws, rules, or regulations to participate in its defense. Further, this indemnity shall not apply to (1) an infringement resulting from compliance with specific written instructions of the Contracting Officer directing a change in the supplies to be delivered or in the materials or equipment to be used, or directing a manner of performance of the contract not normally used by the Ccontractor, (2) an infringement resulting from addition to or change in supplies or components furnished or construction work performed that was made subsequent to delivery or performance, or (3) a claimed infringement that is unreasonably settled without the consent of the Contractor, unless required by final decree of a court of competent jurisdiction.

(c) This patent indemnification shall not apply to the following items: [Contracting Officer list and/or identify the items to be excluded from this indemnity.]

(End of clause)

I.65 52.227-3 PATENT INDEMNITY. (APR 1984) - ALTERNATE II (APR 1984)

(c) This patent indemnification shall cover the following items: [List or identify the items to be included under this indemnity]

I.66 52.228-5 INSURANCE - WORK ON A GOVERNMENT INSTALLATION. (JAN 1997)

I.67 52.228-7 INSURANCE - LIABILITY TO THIRD PERSONS. (MAR 1996)

I.68 52.229-3 FEDERAL, STATE, AND LOCAL TAXES. (FEB 2013)

I.69 52.230-2 COST ACCOUNTING STANDARDS. (JUN 2020)

I.70 52.230-6 ADMINISTRATION OF COST ACCOUNTING STANDARDS. (JUN 2010)

I.71 52.232-1 PAYMENTS. (APR 1984)

I.72 52.232-7 PAYMENTS UNDER TIME-AND-MATERIALS AND LABOR-HOUR CONTRACTS. (NOV 2021)

The Government will pay the Contractor as follows upon the submission of vouchers approved by the Contracting Officer or the authorized representative:

(a) Hourly rate. (1) Hourly rate means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are-

(i) Performed by the Contractor;

(ii) Performed by the subcontractors; or

(iii) Transferred between divisions, subsidiaries, or affiliates of the Contractor under a common control.

(2) The amounts shall be computed by multiplying the appropriate hourly rates prescribed in the Schedule by the number of direct labor hours performed.

(3) The hourly rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract. Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by employees that do not meet the qualifications specified in the contract, unless specifically authorized by the Contracting Officer.

(4) The hourly rates shall include wages, indirect costs, general and administrative expense, and profit. Fractional parts of an hour shall be payable on a prorated basis.

(5) Vouchers may be submitted not more than once every two weeks, to the Contracting Officer or authorized representative. A small business concern may receive more frequent payments than every two weeks. The Contractor shall substantiate vouchers (including any subcontractor hours reimbursed at the hourly rate in the schedule) by evidence of actual payment and by-

(i) Individual daily job timekeeping records;

(ii) Records that verify the employees meet the qualifications for the labor categories specified in the contract; or

(iii) Other substantiation approved by the Contracting Officer.

(6) Promptly after receipt of each substantiated voucher, the Government shall, except as otherwise provided in this contract, and subject to the terms of paragraph (e) of this clause, pay the voucher as approved by the Contracting Officer or authorized representative.

(7) Unless otherwise prescribed in the Schedule, the Contracting Officer may unilaterally issue a contract modification requiring the Contractor to withhold amounts from its billings until a reserve is set aside in an amount that the Contracting Officer considers necessary to protect the Government's interests. The Contracting Officer may require a withhold of 5 percent of the amounts due under paragraph (a) of this clause, but the total amount withheld for the contract shall not exceed $50,000. The amounts withheld shall be retained until the Contractor executes and delivers the release required by paragraph (g) of this clause.

(8) Unless the Schedule prescribes otherwise, the hourly rates in the Schedule shall not be varied by virtue of the Contractor having performed work on an overtime basis. If no overtime rates are provided in the Schedule and overtime work is approved in advance by the Contracting Officer, overtime rates shall be negotiated. Failure to agree upon these overtime rates shall be treated as a dispute under the Disputes clause of this contract. If the Schedule provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime is approved by the Contracting Officer.

(b) Materials. (1) For the purposes of this clause-

(i) Direct materials means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

(ii) Materials means-

(A) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the Contractor under a common control;

(B) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;

(C) Other direct costs (e.g., incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.); and

(D) Applicable indirect costs.

(2) If the Contractor furnishes its own materials that meet the definition of a commercial product or commercial service in Federal Acquisition Regulation (FAR) 2.101, the price to be paid for such materials shall not exceed the Contractor's established catalog or market price, adjusted to reflect the-

(i) Quantities being acquired; and

(ii) Actual cost of any modifications necessary because of contract requirements.

(3) Except as provided for in paragraph (b)(2) of this clause, the Government will reimburse the Contractor for allowable cost of materials provided the Contractor-

(i) Has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or

(ii) Ordinarily makes these payments within 30 days of the submission of the Contractor's payment request to the Government and such payment is in accordance with the terms and conditions of the agreement or invoice.

(4) Payment for materials is subject to the Allowable Cost and Payment clause of this contract. The Contracting Officer will determine allowable costs of materials in accordance with FAR subpart 31.2 in effect on the date of this contract.

(5) The Contractor may include allocable indirect costs and other direct costs to the extent they are-

(i) Comprised only of costs that are clearly excluded from the hourly rate;

(ii) Allocated in accordance with the Contractor's written or established accounting practices; and

(iii) Indirect costs are not applied to subcontracts that are paid at the hourly rates.

(6) To the extent able, the Contractor shall-

(i) Obtain materials at the most advantageous prices available with due regard to securing prompt delivery of satisfactory materials; and

(ii) Take all cash and trade discounts, rebates, allowances, credits, salvage, commissions, and other benefits. When unable to take advantage of the benefits, the Contractor shall promptly notify the Contracting Officer and give the reasons. The Contractor shall give credit to the Government for cash and trade discounts, rebates, scrap, commissions, and other amounts that have accrued to the benefit of the Contractor, or would have accrued except for the fault or neglect of the Contractor. The Contractor shall not deduct from gross costs the benefits lost without fault or neglect on the part of the Contractor, or lost through fault of the Government.

(7) Except as provided for in 31.205-26(e) and (f), the Government will not pay profit or fee to the prime Contractor on materials.

(c) If the Contractor enters into any subcontract that requires consent under the clause at 52.244-2, Subcontracts, without obtaining such consent, the Government is not required to reimburse the Contractor for any costs incurred under the subcontract prior to the date the Contractor obtains the required consent. Any reimbursement of subcontract costs incurred prior to the date the consent was obtained shall be at the sole discretion of the Government.

(d) Total cost. It is estimated that the total cost to the Government for the performance of this contract shall not exceed the ceiling price set forth in the Schedule, and the Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within such ceiling price. If at any time the Contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing this contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the Schedule, the Contractor shall notify the Contracting Officer giving a revised estimate of the total price to the Government for performing this contract with supporting reasons and documentation. If at any time during performing this contract, the Contractor has reason to believe that the total price to the Government for performing this contract will be substantially greater or less than the then stated ceiling price, the Contractor shall so notify the Contracting Officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during performing this contract, the Government has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the Contracting Officer will so advise the Contractor, giving the then revised estimate of the total amount of effort to be required under the contract.

(e) Ceiling price. The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price in the Schedule, and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the Schedule has been increased, any hours expended and material costs incurred by the Contractor in excess of the ceiling price before the

increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.

(f) Audit. At any time before final payment under this contract, the Contracting Officer may request audit of the vouchers and supporting documentation. Each payment previously made shall be subject to reduction to the extent of amounts, on preceding vouchers, that are found by the Contracting Officer or authorized representative not to have been properly payable and shall also be subject to reduction for overpayments or to increase for underpayments. Upon receipt and approval of the voucher designated by the Contractor as the "completion voucher" and supporting documentation, and upon compliance by the Contractor with all terms of this contract (including, without limitation, terms relating to patents and the terms of paragraph (g) of this clause), the Government shall promptly pay any balance due the Contractor. The completion voucher, and supporting documentation, shall be submitted by the Contractor as promptly as practicable following completion of the work under this contract, but in no event later than 120 days (or such longer period as the Contracting Officer may approve in writing) from the date of completion.

(g) Assignment and Release of Claims. The Contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions:

(1) Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible of exact statement by the Contractor.

(2) Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the Contracting Officer not more than 6 years after the date of the release or the date of any notice to the Contractor that the Government is prepared to make final payment, whichever is earlier.

(3) Claims for reimbursement of costs (other than expenses of the Contractor by reason of its indemnification of the Government against patent liability), including reasonable incidental expenses, incurred by the Contractor under the terms of this contract relating to patents.

(h) Interim payments on contracts for other than services. (1) Interim payments made prior to the final payment under the contract are contract financing payments. Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act.

(2) The designated payment office will make interim payments for contract financing on the [Contracting Officer insert day as prescribed by agency head; if not prescribed, insert "30th"] day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(i) Interim payments on contracts for services. For interim payments made prior to the final payment under this contract, the Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(End of Clause)

I.73 52.232-8 DISCOUNTS FOR PROMPT PAYMENT. (FEB 2002)

I.74 52.232-9 LIMITATION ON WITHHOLDING OF PAYMENTS. (APR 1984)

I.75 52.232-11 EXTRAS. (APR 1984)

I.76 52.232-17 INTEREST. (MAY 2014)

I.77 52.232-18 AVAILABILITY OF FUNDS. (APR 1984)

I.78 52.232-23 ASSIGNMENT OF CLAIMS. (MAY 2014)

I.79 52.232-25 PROMPT PAYMENT. (JAN 2017)

I.80 52.232-25 PROMPT PAYMENT. (JAN 2017) - ALTERNATE I (FEB 2002)

I.81 52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER - SYSTEM FOR AWARD MANAGEMENT. (OCT 2018)

I.82 52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS. (JUN 2013)

I.83 52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS. (MAR 2023)

I.84 52.233-1 DISPUTES. (MAY 2014) - ALTERNATE I (DEC 1991)

I.85 52.233-3 PROTEST AFTER AWARD. (AUG 1996)

I.86 52.233-3 PROTEST AFTER AWARD. (AUG 1996) - ALTERNATE I (JUN 1985)

I.87 52.237-2 PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION. (APR 1984)

I.88 52.237-3 CONTINUITY OF SERVICES. (JAN 1991)

I.89 52.239-1 PRIVACY OR SECURITY SAFEGUARDS. (AUG 1996)

I.90 52.242-5 PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS. (JAN 2017)

I.91 52.242-13 BANKRUPTCY. (JUL 1995)

I.92 52.243-1 CHANGES - FIXED-PRICE. (AUG 1987) - ALTERNATE I (APR 1984)

I.93 52.243-3 CHANGES - TIME-AND-MATERIALS OR LABOR-HOURS. (SEP 2000)

I.94 52.244-2 SUBCONTRACTS. (JUN 2020)

(a) *Definitions*. As used in this clause-

Approved purchasing system means a Contractor's purchasing system that has been reviewed and approved in accordance with Part 44 of the Federal Acquisition Regulation (FAR).

Consent to subcontract means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

Subcontract means any contract, as defined in FAR Subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that-

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds-

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts: [ ]

(e)(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting-

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (b), (c), or (d) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination-

(1) Of the acceptability of any subcontract terms or conditions;

(2) Of the allowability of any cost under this contract; or

(3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR Subpart 44.3.

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations: [ ]

(End of clause)

I.95 52.244-5 COMPETITION IN SUBCONTRACTING. (DEC 1996)

I.96 52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (JUN 2023)

I.97 52.245-1 GOVERNMENT PROPERTY. (SEP 2021) - ALTERNATE I (APR 2012)

I.98 52.245-9 USE AND CHARGES. (APR 2012)

I.99 52.248-1 VALUE ENGINEERING. (JUN 2020)

I.100 52.249-2 TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE). (APR 2012)

I.101 52.249-8 DEFAULT (FIXED-PRICE SUPPLY AND SERVICE). (APR 1984)

I.102 52.251-1 GOVERNMENT SUPPLY SOURCES. (APR 2012)

I.103 52.252-2 CLAUSES INCORPORATED BY REFERENCE. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): www.acquisition.gov

(End of clause)

I.104 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES. (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (48 CFR chapter 2) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of clause)

I.105 52.253-1 COMPUTER GENERATED FORMS. (JAN 1991)

I.106 252.201-7000 CONTRACTING OFFICER'S REPRESENTATIVE. (DEC 1991)

I.107 252.203-7000 REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS. (SEP 2011)

I.108 252.203-7001 PROHIBITION ON PERSONS CONVICTED OF FRAUD OR OTHER DEFENSE-CONTRACT-RELATED FELONIES. (JAN 2023)

I.109 252.203-7002 REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS. (DEC 2022)

I.110 252.203-7003 AGENCY OFFICE OF THE INSPECTOR GENERAL. (AUG 2019)

I.111 252.203-7004 DISPLAY OF HOTLINE POSTERS. (JAN 2023)

I.112 252.204-7000 DISCLOSURE OF INFORMATION. (OCT 2016)

(a) The Contractor shall not release to anyone outside the Contractor's organization any unclassified information, regardless of medium (e.g., film, tape, document), pertaining to any part of this contract or any program related to this contract, unless-

(1) The Contracting Officer has given prior written approval;

(2) The information is otherwise in the public domain before the date of release; or

(3) The information results from or arises during the performance of a project that involves no covered defense information (as defined in the clause at DFARS 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting) and has been scoped and negotiated by the contracting activity with the contractor and research performer and determined in writing by the contracting officer to be fundamental research (which by definition cannot involve any covered defense information), in accordance with National Security Decision Directive 189, National Policy on the Transfer of Scientific, Technical and Engineering Information, in effect on the date of contract award and the Under Secretary of Defense (Acquisition, Technology, and Logistics) memoranda on Fundamental Research, dated May 24, 2010, and on Contracted Fundamental Research, dated June 26, 2008 (available at DFARS PGI 204.4).

(b) Requests for approval under paragraph (a)(1) shall identify the specific information to be released, the medium to be used, and the purpose for the release. The Contractor shall submit its request to the Contracting Officer at least 10 business days before the proposed date for release.

(c) The Contractor agrees to include a similar requirement, including this paragraph (c), in each subcontract under this contract. Subcontractors shall submit requests for authorization to release through the prime contractor to the Contracting Officer.

(End of clause)

I.113 252.204-7003 CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT. (APR 1992)

I.114 252.204-7004 ANTITERRORISM AWARENESS TRAINING FOR CONTRACTORS. (JAN 2023)

I.115 252.204-7009 LIMITATIONS ON THE USE OR DISCLOSURE OF THIRD-PARTY CONTRACTOR REPORTED CYBER INCIDENT INFORMATION. (JAN 2023)

I.116 252.204-7012 SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING. (JAN 2023)

I.117 252.204-7015 NOTICE OF AUTHORIZED DISCLOSURE OF INFORMATION FOR LITIGATION SUPPORT. (JAN 2023)

I.118 252.204-7018 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES. (JAN 2023)

I.119 252.204-7020 NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS. (JAN 2023)

I.120 252.204-7022 EXPEDITING CONTRACT CLOSEOUT (MAY 2021)

I.121 252.205-7000 PROVISION OF INFORMATION TO COOPERATIVE AGREEMENT HOLDERS. (JUN 2023)

I.122 252.209-7004 SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY THE GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM. (MAY 2019)

I.123 252.211-7003 ITEM UNIQUE IDENTIFICATION AND VALUATION. (JAN 2023)

I.124 252.211-7007 REPORTING OF GOVERNMENT-FURNISHED PROPERTY. (MAR 2022)

I.125 252.219-7003 SMALL BUSINESS SUBCONTRACTING PLAN (DOD CONTRACTS). (DEC 2019) - ALTERNATE I (DEC 2019)

I.126 252.219-7004 SMALL BUSINESS SUBCONTRACTING PLAN (TEST PROGRAM). (DEC 2022)

I.127 252.222-7006 RESTRICTIONS ON THE USE OF MANDATORY ARBITRATION AGREEMENTS. (JAN 2023)

I.128 252.223-7004 DRUG-FREE WORK FORCE. (SEP 1988)

I.129 252.223-7006 PROHIBITION ON STORAGE, TREATMENT, AND DISPOSAL OF TOXIC OR HAZARDOUS MATERIALS. (SEP 2014)

I.130 252.225-7004 REPORT OF INTENDED PERFORMANCE OUTSIDE THE UNITED STATES AND CANADA-SUBMISSION AFTER AWARD. (OCT 2020)

I.131 252.225-7048 EXPORT-CONTROLLED ITEMS. (JUN 2013)

I.132 252.225-7056 PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME. (JAN 2023)

I.133 252.225-7058 POSTAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA. (JAN 2023)

I.134 252.225-7060 PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION. (JUN 2023)

I.135 252.226-7001 UTILIZATION OF INDIAN ORGANIZATIONS, INDIAN-OWNED ECONOMIC ENTERPRISES, AND NATIVE HAWAIIAN SMALL BUSINESS CONCERNS. (JAN 2023)

I.136 252.227-7013 RIGHTS IN TECHNICAL DATA-OTHER THAN COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (MAR 2023)

I.137 252.227-7014 RIGHTS IN OTHER THAN COMMERCIAL COMPUTER SOFTWARE AND OTHER THAN COMMERCIAL COMPUTER SOFTWARE DOCUMENTATION. (MAR 2023)

I.138 252.227-7015 TECHNICAL DATA-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (MAR 2023)

I.139 252.227-7016 RIGHTS IN BID OR PROPOSAL INFORMATION. (JAN 2023)

I.140 252.227-7020 RIGHTS IN SPECIAL WORKS. (JUN 1995)

I.141 252.227-7025 LIMITATIONS ON THE USE OR DISCLOSURE OF GOVERNMENT-FURNISHED INFORMATION MARKED WITH RESTRICTIVE LEGENDS. (JAN 2023)

I.142 252.227-7026 DEFERRED DELIVERY OF TECHNICAL DATA OR COMPUTER SOFTWARE. (APR 1988)

I.143 252.227-7027 DEFERRED ORDERING OF TECHNICAL DATA OR COMPUTER SOFTWARE. (APR 1988)

I.144 252.227-7030 TECHNICAL DATA - WITHHOLDING OF PAYMENT. (MAR 2000)

I.145 252.227-7037 VALIDATION OF RESTRICTIVE MARKINGS ON TECHNICAL DATA. (JAN 2023)

I.146 252.227-7038 PATENT RIGHTS - OWNERSHIP BY THE CONTRACTOR (LARGE BUSINESS). (JUN 2012)

I.147 252.231-7000 SUPPLEMENTAL COST PRINCIPLES. (DEC 1991)

I.148 252.232-7007 LIMITATION OF GOVERNMENT'S OBLIGATION. (OCT 2021)

(a) Contract line item(s) [Contracting Officer insert after negotiations] is/are incrementally funded. For this/these item(s), the sum of $[Contracting Officer insert after negotiations] of the total price is presently available for payment and allotted to this contract. An allotment schedule is set forth in paragraph (j) of this clause.

(b) For item(s) identified in paragraph (a) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement in the event of termination of those item(s) for the Government's convenience, approximates the total amount currently allotted to the contract. The Contractor is not authorized to continue work on those item(s) beyond that point. The Government will not be obligated in any

event to reimburse the Contractor in excess of the amount allotted to the contract for those item(s) regardless of anything to the contrary in the clause entitled "Termination for Convenience of the Government." As used in this clause, the total amount payable by the Government in the event of termination of applicable contract line item(s) for convenience includes costs, profit, and estimated termination settlement costs for those items(s).

(c) Notwithstanding the dates specified in the allotment schedule in paragraph (j) of this clause, the Contractor will notify the Contracting Officer in writing at least ninety days prior to the date when, in the Contractor's best judgment, the work will reach the point at which the total amount payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then allotted to the contract for performance of the applicable item(s). The notification will state (1) the estimated date when that point will be reached and (2) an estimate of additional funding, if any, needed to continue performance of applicable line items up to the next scheduled date for allotment of funds identified in paragraph (j) of this clause, or to a mutually agreed upon substitute date. The notification will also advise the Contracting Officer of the estimated amount of additional funds that will be required for the timely performance of the item(s) funded pursuant to this clause, for a subsequent period as may be specified in the allotment schedule in paragraph (j) of this clause, or otherwise agreed to by the parties. If after such notification additional funds are not allotted by the date identified in the Contractor's notification, or by an agreed substitute date, the Contracting Officer will terminate any item(s) for which additional funds have not been allotted, pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the contract line item(s) identified in paragraph (a) of this clause, the parties will agree as to the period of contract performance which will be covered by the funds. The provisions of paragraph (b) through (d) of this clause will apply in like manner to the additional allotted funds and agreed substitute date, and the contract will be modified accordingly.

(e) If, solely by reason of failure of the Government to allot additional funds, by the dates indicated below, in amounts sufficient for timely performance of the contract line item(s) identified in paragraph (a) of this clause, the Contractor incurs additional costs or is delayed in the performance of the work under this contract and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the item(s), or in the time of delivery, or both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the clause entitled "Disputes."

(f) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a) of this clause.

(g) The termination provisions of this clause do not limit the rights of the Government under the clause entitled "Default." The provisions of this clause are limited to the work and allotment of funds for the contract line item(s) set forth in paragraph (a) of this clause. This clause no longer applies once the contract is fully funded except with regard to the rights or obligations of the parties concerning equitable adjustments negotiated under paragraphs (d) or (e) of this clause.

(h) Nothing in this clause affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(i) Nothing in this clause shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

(j) The parties contemplate that the Government will allot funds to this contract in accordance with the following schedule:

On execution of contract $[ ]

[month] [day], [year] $[ ]

[month] [day], [year] $[ ]

[month] [day], [year] $[ ]

(End of clause)

I.149 252.232-7010 LEVIES ON CONTRACT PAYMENTS. (DEC 2006)

I.150 252.237-7010 PROHIBITION ON INTERROGATION OF DETAINEES BY CONTRACTOR PERSONNEL. (JAN 2023)

I.151 252.239-7000 PROTECTION AGAINST COMPROMISING EMANATIONS. (OCT 2019)

I.152 252.239-7001 INFORMATION ASSURANCE CONTRACTOR TRAINING AND CERTIFICATION. (JAN 2008)

I.153 252.239-7010 CLOUD COMPUTING SERVICES. (JAN 2023)

I.154 252.239-7018 SUPPLY CHAIN RISK. (DEC 2022)

I.155 252.243-7001 PRICING OF CONTRACT MODIFICATIONS. (DEC 1991)

I.156 252.243-7002 REQUESTS FOR EQUITABLE ADJUSTMENT. (DEC 2022)

I.157 252.244-7000 SUBCONTRACTS FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES. (JAN 2023)

I.158 252.244-7001 CONTRACTOR PURCHASING SYSTEM ADMINISTRATION. (MAY 2014)

I.159 252.245-7000 GOVERNMENT-FURNISHED MAPPING, CHARTING, AND GEODESY PROPERTY. (APR 2012)

I.160 252.245-7001 TAGGING, LABELING, AND MARKING OF GOVERNMENT-FURNISHED PROPERTY (APR 2012)

I.161 252.245-7002 REPORTING LOSS OF GOVERNMENT PROPERTY. (JAN 2021)

I.162 252.245-7003 CONTRACTOR PROPERTY MANAGEMENT SYSTEM ADMINISTRATION. (APR 2012)

I.163 252.245-7004 REPORTING, REUTILIZATION, AND DISPOSAL. (DEC 2017)

I.164 252.251-7000 ORDERING FROM GOVERNMENT SUPPLY SOURCES. (AUG 2012)

(a) When placing orders under Federal Supply Schedules, Personal Property Rehabilitation Price Schedules, or Enterprise Software Agreements, the Contractor shall follow the terms of the applicable schedule or agreement and authorization. Include in each order:

(1) A copy of the authorization (unless a copy was previously furnished to the Federal Supply Schedule, Personal Property Rehabilitation Price Schedule, or Enterprise Software Agreement contractor).

(2) The following statement: Any price reductions negotiated as part of an Enterprise Software Agreement issued under a Federal Supply Schedule contract shall control. In the event of any other inconsistencies between an Enterprise Software Agreement, established as a Federal Supply Schedule blanket purchase agreement, and the Federal Supply Schedule contract, the latter shall govern.

(3) The completed address(es) to which the Contractor's mail, freight, and billing documents are to be directed.

(b) When placing orders under nonmandatory schedule contracts and requirements contracts, issued by the General Services Administration (GSA) Office of Information Resources Management, for automated data processing equipment, software and maintenance, communications equipment and supplies, and teleprocessing services, the Contractor shall follow the terms of the applicable contract and the procedures in paragraph (a) of this clause.

(c) When placing orders for Government stock on a reimbursable basis, the Contractor shall -

(1) Comply with the requirements of the Contracting Officer's authorization, using FEDSTRIP or MILSTRIP procedures, as appropriate;

(2) Use only the GSA Form 1948-A, Retail Services Shopping Plate, when ordering from GSA Self-Service Stores;

(3) Order only those items required in the performance of Government contracts; and

(4) Pay invoices from Government supply sources promptly. For purchases made from DoD supply sources, this means within 30 days of the date of a proper invoice. The Contractor shall annotate each invoice with the date of receipt. For purposes of computing interest for late Contractor payments, the Government's invoice is deemed to be a demand for payment in accordance with the Interest clause of this contract. The Contractor's failure to pay may also result in the DoD supply source refusing to honor the requisition (see DFARS 251.102(f)) or in the Contracting Officer terminating the Contractor's authorization to use DoD supply sources. In the event the Contracting Officer decides to terminate the authorization due to the Contractor's failure to pay in a timely manner, the Contracting Officer shall provide the Contractor with prompt written notice of the intent to terminate the authorization and the basis for such action. The Contractor shall have 10 days after receipt of the Government's notice in which to provide additional information as to why the authorization should not be terminated. The termination shall not provide the Contractor with an excusable delay for failure to perform or complete the contract in accordance with the terms of the contract, and the Contractor shall be solely responsible for any increased costs.

(d) When placing orders for Government stock on a non-reimbursable basis, the Contractor shall-

(1) Comply with the requirements of the Contracting Officer's authorization; and

(2) When using electronic transactions to submit requisitions on a non-reimbursable basis only, place orders by authorizing contract number using the Defense Logistics Management System (DLMS) Supplement to Federal Implementation Convention 511R, Requisition; and acknowledge receipts by authorizing contract number using the DLMS Supplement 527R, Receipt, Inquiry, Response and Material Receipt Acknowledgement.

(e) Only the Contractor may request authorization for subcontractor use of Government supply sources. The Contracting Officer will not grant authorizations for subcontractor use without approval of the Contractor.

(f) Government invoices shall be submitted to the Contractor's billing address, and Contractor payments shall be sent to the Government remittance address specified below:

Contractor's Billing Address (include point of contact and telephone number): [ ]

Government Remittance Address (include point of contact and telephone number): [ ]

(End of clause)

I.165 I SOFA - INVITED CONTRACTOR OR TECHNICAL REPRESENTATIVE STATUS UNDER U.S. - REPUBLIC OF KOREA (ROK) (AUG 2023)

Invited Contractor (IC) and Technical Representative (TR) status shall be governed by the U.S.- ROK Status of Forces Agreement (SOFA) as implemented by United States Forces Korea (USFK) Reg 700-19, which can be found under the "publications" tab on the US Forces Korea homepage http://www.usfk.mil

(a) Definitions. As used in this clause— "U.S. – ROK Status of Forces Agreement" (SOFA) means the Mutual Defense Treaty between the Republic of Korea and the U.S. of America, Regarding Facilities and Areas and the Status of U.S. Armed Forces in the Republic of Korea, as amended "Combatant Commander" means the commander of a unified or specified combatant command established in accordance with 10 U.S.C. 161. In Korea, the Combatant Commander is the Commander, United States Pacific Command. "United States Forces Korea" (USFK) means the subordinate unified command through which US forces would be sent to the Combined Forces Command fighting components. "Commander, United States Forces Korea" (COMUSK) means the commander of all U.S. forces present in Korea. In the Republic of Korea, COMUSK also serves as Commander, Combined Forces Command (CDR CFC) and Commander, United Nations Command (CDR UNC). "USFK, Assistant Chief of Staff, Acquisition Management" (USFK/FKAQ) means the principal staff office to USFK for all acquisition matters and administrator of the U.S.-ROK SOFA as applied to US and Third Country contractors under the Invited Contractor (IC) and Technical Representative (TR) Program (USFK Reg 700-19). "Responsible Officer (RO)" means a senior DOD employee (such as a military E5 and above or civilian GS-7 and above), appointed by the USFK Sponsoring Agency (SA), who is directly responsible for determining and administering appropriate logistics support for IC/TRs during contract performance in the ROK.

(b) IC or TR status under the SOFA is subject to the written approval of USFK, Assistant Chief of Staff, Acquisition Management (FKAQ), Unit #15289, APO AP 96205-5289.

(c) The contracting officer will coordinate with HQ USFK/FKAQ, IAW FAR 25.8, and USFK Reg 700-19. FKAQ will determine the appropriate contractor status under the SOFA and notify the contracting officer of that determination.

(d) Subject to the above determination, the contractor, including its employees and lawful dependents, may be accorded such privileges and exemptions under conditions and limitations as specified in the SOFA and USFK Reg 700-19. These privileges and exemptions may be furnished during the performance period of the contract, subject to their availability and continued SOFA status. Logistics support privileges are provided on an as-available basis to properly authorized individuals. Some logistics support may be issued as Government Furnished Property or transferred on a reimbursable basis.

(e) The contractor warrants and shall ensure that collectively, and individually, its officials and employees performing under this contract will not perform any contract, service, or other business activity in the ROK, except under U.S. Government contracts and that performance is IAW the SOFA.

(f) The contractor's direct employment of any Korean-National labor for performance of this contract shall be governed by ROK labor law and USFK regulation(s) pertaining to the direct employment and personnel administration of Korean National personnel.

(g) The authorities of the ROK have the right to exercise jurisdiction over invited contractors and technical representatives, including contractor officials, employees and their dependents, for offenses committed in the ROK and punishable by the laws of the ROK. In recognition of the role of such persons in the defense of the ROK, they will be subject to the provisions of Article XXII, SOFA, related Agreed Minutes and Understandings. In those cases in which the authorities of the ROK decide not to exercise jurisdiction, they shall notify the U.S. military authorities as soon as possible. Upon such notification, the military authorities will have the right to exercise jurisdiction as is conferred by the laws of the U.S.

(h) Invited contractors and technical representatives agree to cooperate fully with the USFK Sponsoring Agency (SA) and Responsible Officer (RO) on all matters pertaining to logistics support and theater training requirements. Contractors will provide the assigned SA prompt and accurate reports of changes in employee status as required by USFK Reg 700-19.

(i) Theater Specific Training. Training Requirements for IC/TR personnel shall be conducted in accordance with USFK Reg 350-2 Theater Specific Required Training for all Arriving Personnel and Units Assigned to, Rotating to, or in Temporary Duty Status to USFK. IC/TR personnel shall comply with requirements of USFK Reg 350-2.

(j) Except for contractor air crews flying Air Mobility Command missions, all U.S. contractors performing work on USAF classified contracts will report to the nearest Security Forces Information Security Section for the geographical area where the contract is to be performed to receive information concerning local security requirements.

(k) Invited Contractor and Technical Representative status may be withdrawn by USFK/FKAQ upon:

(1) Completion or termination of the contract.

(2) Determination that the contractor or its employees are engaged in business activities in the ROK other than those pertaining to U.S. armed forces.

(3) Determination that the contractor or its employees are engaged in practices in contravention to Korean law or USFK regulations.

(l) It is agreed that the withdrawal of invited contractor or technical representative status, or the withdrawal of, or failure to provide any of the privileges associated therewith by the U.S. and USFK, shall not constitute grounds for excusable delay by the contractor in the performance of the contract and will not justify or excuse the contractor defaulting in the performance of this contract. Furthermore, it is agreed that withdrawal of SOFA status for reasons outlined in USFK Reg 700-19, Section II, paragraph 6 shall not serve as a basis for the contractor filing any claims against the U.S. or USFK. Under no circumstance shall the withdrawal of SOFA Status or privileges be considered or construed as a breach of contract by the U.S. Government.

(m) Support.

(1) Unless the terms and conditions of this contract place the responsibility with another party, the COMUSK will develop a security plan to provide protection, through military means, of Contractor personnel engaged in the theater of operations when sufficient or legitimate civilian authority does not exist.

(2)(i) All Contractor personnel engaged in the theater of operations are authorized resuscitative care, stabilization, hospitalization at level III military treatment facilities, and assistance with patient movement in emergencies where loss of life, limb, or eyesight could occur. Hospitalization will be limited to stabilization and short-term medical treatment with an emphasis on return to duty or placement in the patient movement system.

(ii) When the Government provides medical or emergency dental treatment or transportation of Contractor personnel to a selected civilian facility, the Contractor shall ensure that the Government is reimbursed for any costs associated with such treatment or transportation.

(iii) Medical or dental care beyond this standard is not authorized unless specified elsewhere in this contract.

(3) Unless specified elsewhere in this contract, the Contractor is responsible for all other support required for its personnel engaged in the theater of operations under this contract.

(n) Compliance with laws and regulations. The Contractor shall comply with, and shall ensure that its personnel supporting U.S Armed Forces in the Republic of Korea as specified in paragraph (b)(1) of this clause are familiar with and comply with, all applicable

(1) United States, host country, and third country national laws;

(2) Treaties and international agreements;

(3) United States regulations, directives, instructions, policies, and procedures; and

(4) Orders, directives, and instructions issued by the COMUSK relating to force protection, security, health, safety, or relations and interaction with local nationals. Included in this list are force protection advisories, health advisories, area (i.e. “off-limits”), prostitution and human trafficking and curfew restrictions.

(o) Vehicle or equipment licenses. IAW USFK Regulation 190-1, Contractor personnel shall possess the required licenses to operate all vehicles or equipment necessary to perform the contract in the theater of operations. All contractor employees/dependents must have either a Korean driver’s license or a valid international driver’s license to legally drive on Korean roads.

(p) Evacuation.

(1) If the COMUSK orders a non-mandatory or mandatory evacuation of some or all personnel, the Government will provide assistance, to the extent available, to United States and third country national contractor personnel.

(2) Non-combatant Evacuation Operations (NEO).

(i) The contractor shall designate a representative to provide contractor personnel and dependents information to the servicing NEO warden as required by direction of the Responsible Officer.

(ii) If contract period of performance in the Republic of Korea is greater than six months, non emergency essential contractor personnel and all IC/TR dependents shall participate in at least one USFK sponsored NEO exercise per year.

(q) Next of kin notification and personnel recovery.

(1) The Contractor shall be responsible for notification of the employee-designated next of kin in the event an (2) In the case of missing, captured, or abducted contractor personnel, the Government will assist in personnel recovery actions in accordance with DOD Directive 2310.2, Personnel Recovery. (3) IC/TR personnel shall accomplish Personnel Recovery/Survival, Evasion, Resistance and Escape (PR/SERE) training in accordance with USFK Reg 525-40, Personnel Recovery Procedures and USFK Reg 350-2 Theater Specific Required Training for all Arriving Personnel and Units Assigned to, Rotating to, or in Temporary Duty Status to USFK.

(r) Mortuary affairs. Mortuary affairs for contractor personnel who die while providing support in the theater of operations to U.S. Armed Forces will be handled in accordance with DOD Directive 1300.22, Mortuary Affairs Policy and Army Regulation 638-2, Care and Disposition of Remains and Disposition of Personal Effects.

(s) USFK Responsible Officer (RO). The USFK appointed RO will ensure all IC/TR personnel complete all applicable training as outlined in this clause.

(End of Clause)

I.166 252.225-7978 RESTRICTION ON ACQUISITION OF CERTAIN MAGNETS AND TUNGSTEN (DEVIATION 2019-O0006)(JAN 2019)

I.167 5X252.204-7000-90 PUBLIC RELEASE OF INFORMATION (MAR 2023)

(a) Except as provided in paragraph (b) of this clause, information pertaining to this contract shall not be released to the public unless authorized by the Contracting Officer in accordance with DFARS 252.204-7000, Disclosure of Information. Requests for approval to release information pertaining to this contract (other than past performance) shall be submitted to the Contracting Officer by means of NGA Form 5230-1, National Geospatial-Intelligence Agency Request for Clearance for Public Release.

(b) The contractor may provide past performance information regarding this contract, without completing an NGA Form 5230-1 and without Contracting Officer approval when submission of such information is to the Office of the Director of National Intelligence (ODNI), the Central Intelligence Agency (CIA), the National Reconnaissance Office (NRO), the National Security Agency (NSA), the Defense Intelligence Agency (DIA), and NGA to support source selections at those agencies. The contractor is responsible for the proper classification and handling of such information and shall provide a copy of the information submitted to other agencies to the Contracting Officer.

(End of clause)

I.168 5X52.219-9002 SMALL BUSINESS GOAL (NOV 2013)

(a)The magnitude of this contract may require businesses to team, partner, and/or subcontract with other business concerns large and small. The Government has set a small business subcontracting goal of 35 % of total contract dollars. All large business contractors will be expected to meet and maintain their approved subcontracting goals through the life of the contract in accordance with applicable statutory and regulatory requirements.

(b)Data regarding each large business contractor's small business subcontractor performance shall be provided as follows:

(1) After contract award, large business contractors shall submit data (See paragraph (2)) that identifies the small business subcontractors and work that has been awarded to them in accordance with FAR Part 52.219-9(d)(10)(ii).

(2) The NGA Program Small Business Performance slide (see template in NARI Part 5X53 - Forms) in Section J shall be submitted during the Program Management Review and based on the approved small business subcontracting plan that is a material requirement of this contract.

(End of Clause)

I.169 5X52.227-9000 UNAUTHORIZED USE OF NGA NAME, SEAL AND INITIALS (JUN 2006)

(a) As provide in 10 U.S.C. Section 425, no person may, except with the written permission of both the Secretary of Defense and the Director of National Intelligence, knowingly use the words "National Geospatial-Intelligence Agency", "National Imagery and Mapping Agency", or "Defense Mapping Agency," the initials "NGA", "NIMA", or "DMA," the seal of National Geospatial-Intelligence Agency, National Imagery and Mapping Agency, or the Defense Mapping Agency, or any colorable imitation of such words, initials, or seal in connection with any merchandise, retail product, impersonation, solicitation, or commercial activity in a manner reasonably calculated to convey the impression that such use is approved, endorsed, or authorized by the Secretary of Defense and the Director of Central Intelligence.

(b) Whenever it appears to the U.S. Attorney General that any person is engaged or about to engage in an act or practice which constitutes or will constitute conduct prohibited by paragraph (a), the Attorney General may initiate a civil proceeding in a district court of the United States to enjoin such act or practice. Such court shall proceed as soon as practicable to hearing and determination of such action and may, at any time before final determination, enter restraining orders or prohibitions, or take such other action as is warranted, to prevent injury to the United States, or to any person or class of persons for whose protection the action is brought.

(End of Clause)

I.170 5X52.227-9001 ACTIVITIES THAT AFFECT U.S. PERSONS (NOV 2016)

This contract is sponsored by the National Geospatial-Intelligence Agency. All work and services to be performed hereunder shall be in strict compliance with procedures set forth in DoDM 5240.01.

(End of Clause)

I.171 5X52.228-9000 INSURANCE (SEP 2003)

Pursuant to FAR 52.228-5, Insurance - Work on a Government Installation, the contractor shall acquire and maintain during the entire performance period of this contract, insurance of at least the following kinds and minimum amounts as set forth below:

(a) Workman's Compensation and Employer's Liability Insurance: In accordance with amounts specified by the laws of the state in which the work is to be performed under this contract. In the absence of such state laws, an amount of $100,000 shall be required and maintained.

(b) General Liability Insurance: Bodily injury liability in the minimum amount of $500,000 per occurrence.

(c) Automobile Liability Insurance: In the amounts of at least $200,000 per person and $500,000 per occurrence for bodily injury and $20,000 per occurrence for property damage.

(d) Aircraft public and passenger liability when aircraft are used in connection with performing the contract: $200,000 per person and $500,000 per occurrence for bodily injury other than passenger liability, and $200,000 per occurrence for property damage. Coverage for passenger liability and bodily injury shall be $200,000 multiplied by the number of seats or passengers, whichever is greater.

Execution of this proposal/contract shall constitute certification that the contractor is in compliance with all contractual requirements and any applicable State or Federal laws with respect to insurance requirements.

(End of clause)

I.172 5X52.37-9000 CONTRACTOR EMPLOYEE DATA FOR ACCESS TO NGA FACILITIES OR SENSITIVE SYSTEMS (OCT 2005)

1. This clause defines the contractor's responsibilities for providing accurate contractor data, and providing updates to that data, for NGA's Human Capital Management System (HCMS). NGA requires that all contractors provide initial and timely updates to HCMS data for all personnel performing under this contract who have access to NGA facilities or sensitive systems, as determined by the contracting officer.

2. The Contractor shall:

a. Provide the Contracting Officers Representative (COR) a Point of Contact (POC) for providing and maintaining contractor personnel data for the HCMS database. The POC shall be provided to the COR, in writing, within 10 days of contract award (or modification inserting this clause). For contracts with an on-site Project Lead or Program Manager, this person shall serve as the POC.

b. Provide the COR initial HCMS data for their personnel within 10 days of contract award or modification. The information that is to be provided for HCMS shall include: persons full legal name, social security number, citizenship status, NGA contract number, prime contractor name, NGA location and organization where the person will be working, and a 24/7 emergency contact point for the contractor.

c. Notify the COR of all contractor data changes within 10 days of the change. Changes include new or departing contractor personnel and any change to information provided in paragraph b above. If the contract number under which a contractor or its personnel work changes, the POC for the contract receiving the personnel shall notify the COR within 10 days of the change.

d. Provide response to all inquiries made by NGA as to the validity and completeness of contractor data records in the HCMS database within two weeks of date of request.

e. Ensure all employees attend in-processing and out-processing briefings.

(End of Clause)

I.173 5X52.237-9001 CONTRACTOR IDENTIFICATION (JAN 2012)

The contractor shall ensure that contractor personnel, including their sub-contractor personnel, identify themselves as contractor personnel, by introducing themselves or being introduced as contractor personnel when:

(1) attending meetings with Government personnel or contractors performing under a contract awarded to support NGA requirements,

(2) answering government telephones,

(3) providing any type of written or electronic mail correspondence, and

(4) working in any other situation where their actions could be construed as an official Government act or representation of the Government.

The contractor shall ensure that contractor personnel possess and properly display Government-issued identification badges when on NGA property or when attending NGA meetings not located on NGA property.

The contractor will ensure that contractor personnel, when performing in a contractor capacity, refrain from using their retired or reserve component military rank or title in all written and verbal communications.

The Government may include the results of the contractor's ability to adhere to this clause in quality assurance surveillance plans and award fee plans as part of the overall administration of this contract.

(End of Clause)

I.174 5X52.239-9001 GEOINT STANDARDS AND PROFILE IMPLEMENTATION/COMPLIANCE FOR A NEW PROGRAM (HEREAFTER REFERRED TO AS NPX) (DEC 2011)

(a) The Contractor shall engage in a collaborative/iterative process with NGA [specifically the National Center for Geospatial Intelligence Standards (NCGIS) and the NGA Architecture and Standards Board's (NASB) Integrated Architecture Working Group (IAWG)], to identify and assess standards selected from NSG Enterprise Architecture Standards Views (StdV-1 and StdV-2) in order to implement mandated

standards through the use of Capability Standards Profiles (CSP) for the specific GEOINT capability being delivered.

(b) The Contractor shall review NSG StdV-1 and StdV-2 updates for new and emerging standards annually, in accordance with DOD IT Standards Registry (DISR)/IC Standards Registry (ICSR) mandated baselines, which may impact the NPX CSP. This

assessment shall include cost data, interoperability factors and developer recommendations which will be provided during scheduled program reviews established by Program Management.

(c) The Contractor shall use, reuse and/or extend existing mandated or emerging GEOINT standards and profiles where such use/reuse benefits interoperability and supports cost, schedule, and performance measures. Only where existing standards fail to meet a specific functionality supporting the program's desired capability may the Contractor recommend alternative standards to be followed in the NPX CSP design. These recommendations will include supporting rationale, drawing on the contractor's knowledge of applicable industry standards, other standards cited in the DISR, ICSR/IC Enterprise Registry and Repository (ER2), or evolving/emerging community standards.

(d) The Contractor shall submit waivers through the Program Manager to the NASB when selecting/implementing standards inconsistent with NGA's StdV-1 and/or those prescribed in DISR/ICSR/ER2, and may be required to brief the government regarding the use of non-StdV-1 standards if they are necessary to satisfy NPX capability and functionality.

(e) The Contractor shall provide the Government access to the CSPs and required architecture views, and present status of CSP and standards conformance at Government readiness reviews if requested.

(f) The Contractor shall obtain Government approval for changes to the NPX CSP. At a minimum, approval shall come from the Program Office/NCCB and the NASB for impacts to the Architecture and NSG interoperability.

(g) The Contractor shall obtain final approval from the cognizant NGA contracting officer prior to implementing NPX CSP changes that affect the requirements of the contract.

(End of Clause)

I.175 5X52.239-9002 CONTINGENCY PLANNING REQUIREMENTS FOR TECHNOLOGY RESOURCES (SEP 2016)

(a) Definitions. See Appendix A of this clause.

(b) Applicability. This clause applies whether the entire contract or task order (hereafter 'contract'), or portion thereof, includes information technology resources or services in which the Contractor is developing a system or application, or operates and sustains any National Geospatial-Intelligence Agency (NGA) system containing, information that directly supports execution of NGA's mission essential function (MEF).

(c) Contractor Responsibilities. The Contractor is responsible for the following:

(1) Developing continuity of operations plans for information systems (hereafter referred to as 'IT Disaster Recovery (ITDR) Plans') consistent with NGA policy and the approach contained in the Contractor's bid or proposal that resulted in the award of this contract. The plan is to continue NGA system operations and to ensure their:

(i) Integrity, guard against improper information modification or destruction, and includes ensuring information non-repudiation and authenticity;

(ii) Confidentiality, preserve authorized restrictions on access and disclosure, including means for protecting personal privacy and proprietary information; and,

(iii) Availability, ensure timely and reliable access to and use of information. A loss of availability is the disruption of access to, or use of, information or an information system. The requirement to develop an ITDR Plan for NGA information systems is directly linked to the Availability Categorization (Low, Moderate, or High, per FIPS 199) but is not solely linked to a system's Availability Categorization. Availability for Contingency Planning purposes does not equate to meeting Service Level Agreement (SLA) requirements to ensure a specific level of system availability/up-time (e.g., 99.98, 99.73, etc.). SLA percentages of up-time do not directly translate into assured system redundancy, off-site data backup and storage, or the ability to recover an information system whose operation has been disrupted by a specific man-made or natural disaster. Availability, with regard to Contingency Planning, shall be centered around customer/functional user stated recovery time objectives (RTO) and recovery point objectives (RPO). Considering alternate site operations is part of the recovery strategy to ensure availability.

(2) Providing ITDR for any NGA or Contractor systems, and information contained therein, connected to an NGA network or operated by the Contractor, regardless of location, on behalf of NGA.

(3) Adopting, and implementing, at minimum, the policies, procedures, controls, and standards of the NGA Continuity Program to ensure the availability of NGA information and information systems for which the Contractor

is responsible under this contract, or to which the contractor may otherwise have access under this contract. The NGA Continuity Program is outlined in the NGA Instruction for Continuity Planning (NI 3020.2), which is available within the NGA Library, Internal Policies website.

(4) Ensure all NGA systems supported are properly developed, implemented, and categorized in accordance with the applicable Federal, DoD and NGA directives, standards, instructions etc. that are listed at Appendix B.

(5) Completed plans shall be entered into the NGA corporate repository known as the Continuity Planning Tool (CPT).

(d) Contractor Contingency Planning Deliverables. In accordance with the timeframes specified, the Contractor shall prepare and submit the following contingency planning related documents to the Contracting Officer/Contract Specialist (CO/CS), Contracting Officer Representative (COR), Program Manager (PM), or NGA Mission Assurance Division as appropriate/required.

(1) System Developers:

(i) IT Disaster Recovery (ITDR) Plan - due prior to system delivery. The ITDR Plan shall document precautions and measures to minimize the effects of an incident or disaster on NGA's related IT infrastructure, systems applications, and data resources. Plans should include specific, detailed, step-by-step procedures for recovering the information system(s) components, operating system, applications, data, and processes to implement in the event of a major hardware/software failure, communications or network outage, or facility unavailability. All ITDR Plans will be developed using the standard NGA ITDR Plan Template provided by the NGA Mission Assurance Division in the CPT. The plan will address all baseline Contingency Planning Controls as required for the system(s) as categorized per FIPS 199 outlined in:

(A) Committee on National Security Systems Instruction (CNSSI) 1253 'Security Categorization and Control Selection for National Security Systems'

(B) National Institute of Standards and Technology (NIST) 800-53 'Recommended Security Controls for Federal Information Systems and Organizations'

(C) National Institute of Standards and Technology (NIST) 800-34 'Contingency Planning Guide for Federal Information Systems'

(ii) IT Disaster Recovery (ITDR) Plan Operational Exercise - due prior to system and/or Application Service Provider (ASP) Initial Operational Capability (IOC). Prior to IOC, the contractor shall conduct an operational exercise of the information system(s) ITDR Plan to ensure its viability and executability. Exercise results and lessons learned shall be documented and any issues noted in executability documented in a Plan of Actions and Milestones (POA&M) and remediated prior to final system delivery as part of the Assessment and Authorization (A&A) process (formerly Certification and Accreditation (C&A) process).

(2) System Operators and Sustainers:

(i) IT Disaster Recovery (ITDR) Plan - due within 6 months of assuming responsibility for the operations and sustainment (O&S) or A&A of any NGA information system. The ITDR Plan shall document actionable precautions and executable measures to minimize the effects of an incident or disaster on NGA's related IT infrastructure, critical systems applications, and data resources. Plans should include specific, detailed, step-by-step procedures for recovering the information system(s) components, operating system, applications, data, and the processes to implement in the event of a major hardware/software failure, communications or network outage, or facility unavailability. All ITDR Plans will be developed using the standard NGA ITDR Plan Template and shall address all baseline Contingency Planning Controls as determined via the security controls at the entity registration meeting and as required for the system(s) as categorized per FIPS 199 outlined in:

(A) Committee on National Security Systems Instruction (CNSSI) 1253 'Security Categorization and Control Selection for National Security Systems'

(B) National Institute of Standards and Technology (NIST) 800-53 'Recommended Security Controls for Federal Information Systems and Organizations'

(C) National Institute of Standards and Technology (NIST) 800-34 'Contingency Planning Guide for Federal Information Systems'

(ii) If an ITDR Plan has already been created by the System Developer for the system, the O&S contractor will assume responsibility for the plan, familiarize themselves with its contents and ensure their ability to execute the existing plan, and staff, exercise, and update the plan per sections iii-v below.

(iii) IT Disaster Recovery Team - due within 6 months. Identify and put in place the appropriate number of personnel with the required skill sets to execute the system ITDR Plan and ensure recovery/reconstitution of the entity.

(iv) IT Disaster Recovery (ITDR) Operational/Functional Exercise - due annually. The contractor shall conduct an operational/functional exercise of the information system(s) ITDR Plan (at minimum annually) to ensure its viability and executability. Exercise results and lessons learned shall be documented and provided to the System Program Manager and any issues noted in plan executability shall be remediated.

(A) Conducting an operational exercise on any given day may not be feasible within the larger scope of NGA operations. However, an operational exercise will be conducted annually to ensure Agency ability to react to and execute the ITDR Plan under 'live' conditions. Planned site power outages may be used to accomplish this task.

(B) Annual ITDR Plan exercise records and results will be maintained to support tracking of Agency contingency planning performance measure/metrics and NGA's external reporting requirements to higher authority.

(v) IT Disaster Recovery Plan (ITDR) Maintenance - due annually or as required based on changes to system(s) architecture, configuration, processes, or primary points of contact.

(e) Training. All contractors supporting this contract will complete all mandatory Security, Information Assurance, and Business Continuity/Disaster Recovery training required by the Agency. These courses are offered through the NGA College at no cost to the contractor.

(f) Government Access for IT Inspection. The Contractor, upon request, shall afford the Government access to Contractor and subcontractor facilities, installations, operations, documentation, databases, and personnel used in performance of this contract to the extent required to carry out the NGA Continuity Program and audit the ability of the contractor to implement and execute proposed business continuity/disaster recovery plans to safeguard against threats and hazards to the integrity, confidentiality, and availability of NGA information systems and/or data.

(g) Government-Furnished Property (GFP)/Contractor-Acquired Property (CAP). All government funded property purchased by the Government, or the Contractor for the Government, used in execution of this contract, will be entered for accountability purposes into the NGA Total Asset Management (TAM) System.

(h) Subcontracts. The Contractor shall incorporate the substance of this clause in all subcontracts that require protection of NGA information and information systems as described in paragraph (a) of this clause, including those subcontracts that:

(1) Have physical or electronic access to NGA computer systems, networks, or IT infrastructure; or,

(2) Use information systems to generate, store, process, or exchange data with NGA or on behalf of NGA, regardless of whether the data resides on a NGA or the Contractor's information system.

(i) Document Information. The Contractor shall contact the COR for any documents, information, or forms necessary to comply with the requirements of this clause.

(j) Contractor Responsibilities Upon physical completion of the contract, the Contractor shall return all NGA information and IT resources provided to the Contractor during contract performance and the Contractor shall certify that all NGA information has been purged from Contractor-owned systems used in contract performance.

(k) Failure to Comply. Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause shall be grounds for the Contracting Officer to terminate this contract.

APPENDICES to local clause 5X52.239-9002

Appendix A to 5X52.239-9002 - Definitions

Business Continuity Plans are documents that define resources, recovery responsibilities, and a predetermined set of instructions or procedures that describe how business processes will be restored after a significant disruption to business operations has occurred.

Continuity of Operations Plans provide for the continuation of an organization's essential functions at an alternate site and performing those functions for the duration of an event with little or no loss of continuity.

Continuity Planning Tool is the common repository for business continuity and disaster recovery plans and information within NGA. It is an automated, web-based planning tool accessible to all NGA government and contract staff. The tool is developed and maintained by NGA to support implementation of its overall Continuity Program.

Disaster Recovery Plans provide for the continuity of system operations after a disaster.

Exercise refers to the process of simulating an emergency to validate the viability of one or more aspects of a contingency plan to ensure that the plan is capable of supporting the continued execution of the agency's business functions throughout the duration of a continuity event.

Federal Information means, in accordance with OMB Circular A-130, Management of Federal Information Resources, Appendix 3 (Security of Federal Automated Information Resources), information created, collected, processed, disseminated, or disposed of by or for the Federal Government.

Federal Information System means an information system used or operated by an executive agency, by a contractor of an executive agency, or by another organization on behalf of an executive agency.

Information, in accordance with OMB Circular A-130, Management of Federal Information Resources, Appendix 3 (Security of Federal Automated Information Resources), means any communication or representation of knowledge such as facts, data, or opinions in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual forms.

Information Security means protecting information and information systems from unauthorized access, use, disclosure, disruption, modification or destruction in order to provide:

(a) Integrity, which means guarding against improper information modification or destruction, and includes ensuring information non-repudiation and authenticity;

(b) Confidentiality, which means preserving authorized restrictions on access and disclosure, including means of protecting personal privacy and proprietary information;

(c) Availability, which means ensuring timely and reliable access to and use of information; and

(d) Privacy, which means regulating the appropriate collection, maintenance, use, and dissemination of personal information by federal executive branch agencies. It prohibits disclosure without consent.

Information System means a discrete set of information resources organized for the collection, processing, maintenance, transmission, and dissemination of information, in accordance with defined procedures, whether automated or manual.

Information Technology includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar processes, services (including support services) and related resources.

Mission Essential Function refers to the limited set of agency-level government functions that must be continued after a disruption of normal activities. NGA's single MEF is to 'Task, collect, process, exploit, analyze, and disseminate timely, relevant, and accurate geospatial-intelligence consisting of imagery, imagery-intelligence, and geospatial information for use by the Armed Forces, Departments or Agencies of the U.S., and foreign partners.'

Recovery Point Objective (RPO) is the point in time to which systems and data must be recovered after an outage (for example, end of previous day's processing). RPOs are often used as the basis for the development of backup strategies, and as a determinant of the amount of data that may need to be recreated after the systems or functions have been recovered.

Recovery Time Objective (RTO) is the period of time within which systems, applications, or functions must be recovered after an outage (for example, one business day). RTOs are often used as the basis for the development of recovery strategies and as a determinant as to whether or not to implement the recovery strategy during a disaster situation. RTO is derived from the point/time of service disruption.

Appendix B to 5X52.239-9002 - List of Applicable Standards, Directives, and Instructions

- Federal Information Security Management Act (FISMA)

- Department of Homeland Security - Federal Continuity Directive (FCD) 1 'Federal Executive Branch National Continuity Program and Requirements;'

- Intelligence Community Memorandum (ICM) 2007-100-1 'Intelligence Community Continuity Programs;'

- CNSSI 1253 'Security Categorization and Control Selection for National Security Systems;'

- DoD Directive 3020.26 'Defense Continuity Program;'

- DoD Instruction 3020.39 'Integrated Continuity Program for the Defense Intelligence Enterprise (DIE);'

- DoD Instruction 3020.42 'Defense Continuity Plan Development;'

- DoD Instruction 3020.45 'Defense Critical Infrastructure Program (DCIP) Management;'

- DoD Instruction 8500.2 'Information Assurance Implementation;'

- NIST SP800-34 'Contingency Planning Guide for Federal Information Systems;'

- NIST SP800-53 'Recommended Security Controls for Federal Information Systems and Organizations;' and

- All applicable NGA internal Policy Directives (PD), Policy Notices (PN), NGA Instructions (NI), and NGA CIO Directives (NCD).

(End of Clause)

I.176 5X52.45.102-9000 MANAGEMENT OF NGA GOVERNMENT PROPERTY (MAR 2023)

Management of NGA Government Property

(a) Definitions

(1) NGA Accountable Property System of Record (APSR) is the enterprise system for property accountability, stewardship, and financial reporting. Contains the official records that form the basis for accountability, audit, and fiduciary reporting of accountable property. Functions as a sub-ledger to the NGA accounting system for financial reporting purposes.

(b) Contractor Responsibilities.

(1) The Contractor shall account for all accountable Government Furnished Property (GFP) in NGA APSR in accordance with DoDI 5000.64.

(2) The Contractor shall designate an Asset Custodian (AC) to manage and account for no greater than 3,000 GFP assets per AC in the NGA APSR. UNCLASSIFIED 130 UNCLASSIFIED

(3) The Contractor shall physically inventory 100% of all accountable GFP in its possession on an annual basis based on NGA-SIOP Inventory Schedule and ensure reconciliation within the APSR.

(4) Contractors should submit their annual inventory report to SIOP, in turn for OCS to incorporate as the official GFP support record.

(5) Contractors with no access to COE/APSR shall report inventory results, asset deliveries/receipt, and asset disposal within 10 days of completion to the NGA Security and Installation Operations Office, Policy and Programs Division (SIOP) at NGA/SIOP, Mail Stop N82-SIOP, 7500 GEOINT Drive, Springfield, VA 22150 to update the NGA APSR.

(c) Government Responsibilities.

(1) The NGA Security and Installation Operations Directorate, Installation Operations Office, Policy and Programs Division (SIOP) shall perform the property administration function identified in FAR 42.302(a)(27).

(2) The Government shall provide instruction on the use of the NGA APSR.

(3) The Government shall designate a Program Asset Manager to perform receipt and acceptance on behalf of the Government for property managed in the NGA APSR.

(End of Clause)

I.177 5X52.45.592-9000 GOVERNMENT-FURNISHED LIMITED DISTRIBUTION MATERIALS (JUN 2004)

(a) Definition - LIMITED DISTRIBUTION (LIMDIS) materials mean any unclassified geospatial information and data or imagery distributed by or created by the National Geospatial-Intelligence Agency, as well as materials derived from National Geospatial-Intelligence Agency information and data, that is marked or labeled as "LIMITED DISTRIBUTION" or "LIMDIS".

(b) Geospatial information and data or imagery identified as being "LIMITED DISTRIBUTION" are protected from public disclosure pursuant to Title 10, United States Code, Section 455. The Government may provide LIMITED DISTRIBUTION materials to the Contractor (or Subcontractor) for use in the performance of this contract.

(c) In addition to the restrictions and obligations contained in the clause at DFARS 252.245-7000, "Government-Furnished Mapping, Charting, and Geodesy Property (April 2012)," the Contractor (or Subcontractor) shall:

(1) Grant access to LIMDIS materials to only those individuals having a need for access in the performance of this contract. In furtherance of this requirement, the contractor shall:

a. Prohibit storage of LIMDIS materials on systems accessible by other individuals who do not require such access.

b. Ensure that LIMDIS materials are not used to either demonstrate products or capabilities outside the scope of the contract or as a marketing tool.

c. Ensure that LIMDIS materials are not used to create other products or derivative products.

d. Prohibit the processing or transmission of LIMDIS materials on unencrypted or unsecured systems accessible by the public such as the World Wide Web.

e. Ensure that LIMDIS materials are not displayed or made otherwise accessible to the public.

f. Ensure that LIMDIS materials are not released, accessed by, or sold to foreign governments or international organizations.

g. Take whatever additional measures are necessary to prevent unauthorized access to LIMDIS materials.

h. Employ storage and inventory controls adequate to ensure that LIMDIS materials are protected from loss or unauthorized use or access.

(2) Ensure each reproduction of LIMDIS materials includes the following LIMDIS caveat:

LIMITED DISTRIBUTION

Distribution authorized to DoD, IAW 10 U.S.C. § 130 & § 455. Release authorized to U.S. DoD contractors IAW 48 CFR § 252.245-7000. Refer other requests to Headquarters, NGA, ATTN: Release Officer, Mail Stop D-136. Destroy as "FOR OFFICIAL USE ONLY." Removal of this caveat is prohibited.

(3) Ensure LIMDIS materials that are no longer required for contract performance and chosen for destruction are destroyed by a method that prevents reconstruction of the materials to their original condition. Paper products should be destroyed by a method such as pulping, burning, or cross-cut shredding. Electronic media should be returned to the Contracting Officer or destroyed locally in a manner that prevents reconstruction of the media and abides by any environmental regulations.

(4) Immediately submit a report to the Contracting Officer upon discovery that LIMDIS material has been lost, stolen, or disclosed to unauthorized persons. Follow-up reports containing additional facts will be provided immediately when those facts become known. The Contractor (and/or Subcontractor) shall provide an assessment of the extent to which LIMDIS material has been compromised and shall propose corrective action to limit the extent of compromise and to prevent a reoccurrence.

(d) The Contractor shall include the terms and conditions of subparagraphs (a) through (c) of this provision in every subcontract.

(End of Clause)

I.178 5X52.246-9000 CONTRACTOR COMPLIANCE WITH ALL APPLICABLE NATIONAL GEOSPATIAL-INTELLIGENCE AGENCY (NGA) AND U.S. GOVERNMENT INSTALLATION REGULATIONS, DIRECTIVES, INSTRUCTIONS, RULES, POLICIES AND PROCEDURES (MAR 2023)

5X52.246-9000 - Contractor Compliance with all applicable National Geospatial-Intelligence Agency (NGA) and U.S. Government installation regulations, directives, instructions, rules, policies and procedures. (MAR 2023)

A. The Contractor shall comply with, and shall ensure that its personnel, to include subcontractors, comply with all applicable NGA regulations, directives, instructions, rules, policies and procedures. The Contractor may request copies from the Contracting Officer's Representative (COR), the Contracting Officer or their designated representative(s).

B. The Contractor shall comply with, and shall ensure that its personnel, to include subcontractors, comply with regulations, directives, instructions, rules, policies, procedures and other applicable requirements issued by the U.S. Government Installation Commander where NGA is a tenant activity, including, but not limited to, those relating to force protection, security, health and safety. The Contractor may request copies from the Contracting Officer's Representative (COR), the Contracting Officer or their designated representative(s).

C. The Contractor shall institute and implement an effective program to ensure their employees and subcontractors, comply with all applicable requirements in accordance with paragraphs A and B above as well as paragraphs E and H below.

D. The specific requirements covered in paragraphs A, B, E, and H may be specified in the Performance Work Statement, elsewhere in the contract, or in NGA and/or Government installation regulations, directives, instructions, rules, policies and procedures. Specific requirements may include, but are not limited to categories such as:

• Security in/out processing

• Personnel in/out processing

• Facility access, parking, and in/out processing

• Information technology access and in/out processing

• PeopleSoft access, updates and in/out processing

• Periodic and special training requirements

E. Facility Access and Badging.

The following criteria must be met in order to be issued an NGA IC badge and to gain access to an NGA-controlled facility:

(1) NGA IC badges will only be issued to those contractors who provide direct-charge support on an active TS/SCI NGA contract, even when seated at corporate locations outside of NGA Government facilities. Green badges must be used at least once during a one-month period at an NGA Government facility. Failure to use an NGA IC badge may result in suspension or termination of the badge for lack of activity. The badges will expire at the end of the supported contract. Note: NGA IC badges will not be issued to any contractor who does not need access to an NGA facility, i.e., Corporate VIPs, etc. Infrequent visitors must report to the Visitor's Center.

(2) Notwithstanding the above, NGA badges will be issued to contractors, who are required by contract, to gain access to an NGA facility in the event of an emergency or when after-hours access is required. The Government POC or Contracting Officer's Representative (COR) coordinates the submission of an application for an NGA badge; establishment of a PeopleSoft record of SCI accesses; completion of NGA Form 5212-7A, "Request for Identification/Building Access Picture Badge"; and submission of the application to the appropriate Site Security Office for approval. (Reference NGA Instruction 5210.8, Physical Security Program)

F. The Contracting Officer may direct the Contractor, at its own expense, to remove and replace any Contractor personnel who fail to comply with or violate applicable requirements of this clause. Such action may be taken at the

Government's discretion without prejudice to its rights under any other provision of this contract, including the Termination for Default clause.

G. The Contracting Officer may include the results of the Contractor's ability to adhere to this clause in past performance reports, quality assurance surveillance plans and award fee plans as part of the overall administration of this contract.

H. NGA Inspector General

(1) The contractor must report to the NGA Inspector General (IG), DoDIG, or Intelligence Community IG any and all possible violations of federal law or illegal intelligence activities related to this contract by individuals charging directly or indirectly to this contract.

(2) The IG shall have access to any individual charging directly or indirectly to this contract whose testimony is needed for the performance of the IG's duties. In addition, the IG shall have direct access to all records, reports, audits, reviews, recommendations, documents, e-mails, papers, or other material that relate to this contract with respect to which the IG has responsibilities. Failure on the part of any contractor to cooperate with the IG shall be grounds for administrative action by the Director, Office of Contract Services, including contractual remedies.

(3) NGA contractors and contractor personnel may report suspected instances of improper conduct through the NGA IG Hotline. Contractors shall make their employees aware of this Hotline: 571-557-4849, secure 578-4849, or toll free 1-800-380-7729 or by contacting the OIG at IG@nga.mil or secure at IG@nga.ic.gov.

(4) The contractor agrees to include the substance of this clause in all subcontracts exceeding the simplified acquisition threshold except those for commercial products or commercial services and those where the NGA association must be protected.

(5) This requirement is supported in the Federal Acquisition Regulation (FAR) clause 52.203-13, which requires timely disclosure to the Government of credible evidence of violation of law, and timely and complete response to OIG requests for documents and access to employees and information.

(6) This requirement is supported in NGA policy. NGAI 7410.1 requires all personnel, to include contractors, to cooperate fully with NGA OIG audits, inspections, and investigations.

(End of Clause)

I.179 52.222-19 CHILD LABOR-COOPERATION WITH AUTHORITIES AND REMEDIES (DEVIATION 2020-O0019)

(a) Applicability. This clause does not apply to the extent that the Contractor is supplying end products mined, produced, or manufactured in—

(1) Israel, and the anticipated value of the acquisition is $50,000 or more;

(2) Mexico, and the anticipated value of the acquisition is $83,099 or more; or

(3) Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia,

Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Italy, Japan, Korea, Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or the United Kingdom and the anticipated value of the acquisition is $182,000 or more.

(b) Cooperation with Authorities. To enforce the laws prohibiting the manufacture or importation of products mined, produced, or manufactured by forced or indentured child labor, authorized officials may need to conduct investigations to determine whether forced or indentured child labor was used to mine, produce, or manufacture any product furnished under this contract. If the solicitation includes the provision 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products, or the equivalent at 52.212-3(i), the Contractor agrees to cooperate fully with authorized officials of the contracting agency, the Department of the Treasury, or the Department of Justice by providing reasonable access to records, documents, persons, or premises upon reasonable request by the authorized officials.

(c) Violations. The Government may impose remedies set forth in paragraph (d) for the following violations:

(1) The Contractor has submitted a false certification regarding knowledge of the use of forced or indentured child labor for listed end products.

(2) The Contractor has failed to cooperate, if required, in accordance with paragraph (b) of this clause, with an investigation of the use of forced or indentured child labor by an Inspector General, Attorney General, or the Secretary of the Treasury.

(3) The Contractor uses forced or indentured child labor in its mining, production, or manufacturing processes.

(4) The Contractor has furnished under the contract end products or components that have been mined, produced, or manufactured wholly or in part by forced or indentured child labor. (The Government will not pursue remedies at paragraph (d)(2) or paragraph (d)(3) of this clause unless sufficient evidence indicates that the Contractor knew of the violation.)

(d) Remedies.

(1) The Contracting Officer may terminate the contract.

(2) The suspending official may suspend the Contractor in accordance with procedures in FAR Subpart 9.4.

(3) The debarring official may debar the Contractor for a period not to exceed 3 years in accordance with the procedures in FAR Subpart 9.4.

(End of clause)

SECTION J - List of Documents, Exhibits and Other Attachments

J.1 List of Documents, Exhibits and Other Attachments

Attachment Number	Title	Document Version	Date	Number of Pages

SECTION K - Representations, Certifications, and Other Statements of Bidders

K.1 Representations, Certifications, and Other Statements of Bidders

K.2 52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS. (MAR 2023)

(a)(1) The North American Industry Classification System (NAICS) code for this acquisition is [insert NAICS code].

(2) The small business size standard is [insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

___ (i) Paragraph (d) applies.

___ (ii) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in Part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed $150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of USDA-designated items; or include the clause at 52.223-2, Affirmative Procurement of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the clause at 52.204-7.)

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than $50,000, the basic provision applies.

(B) If the acquisition value is $50,000 or more but is less than $92,319, the provision with its Alternate II applies.

(C) If the acquisition value is $92,319 or more but is less than $100,000, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

[ ] (i) 52.204-17, Ownership or Control of Offeror.

[ ] (ii) 52.204-20, Predecessor of Offeror.

[ ] (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

[ ] (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Certification.

[ ] (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

[ ] (vi) 52.223-9, with its Alternate I, Estimate of Percentage of Recovered Material Content for EPA-Designated Products (Alternate I only).

[ ] (vii) 52.227-6, Royalty Information.

[ ] (A) Basic.

[ ] (B) Alternate I.

[ ] (viii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The Offeror has completed the annual representations and certifications electronically in SAM accessed through *https://www.sam.gov*. After reviewing the SAM information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR

4.1201); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

(End of provision)

K.3 52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT. (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions*. As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition*. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (*https://www.sam.gov*) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) *Representations*. The Offeror represents that-

(1) It [ ] will, [ ] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It [ ] does, [ ] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures*. (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

K.4 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS. (OCT 2018)

(a) *Definitions*. As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [ ] has [ ] does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via *https://www.sam.gov* (see 52.204-7).

(End of provision)

K.5 52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION. (NOV 2021)

[ ] (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at *https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/*; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at *https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/*; or

[ ](2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

K.6 52.223-22 PUBLIC DISCLOSURE OF GREENHOUSE GAS EMISSIONS AND REDUCTION GOALS-REPRESENTATION. (DEC 2016)

K.7 52.230-1 COST ACCOUNTING STANDARDS NOTICES AND CERTIFICATION. (JUN 2020)

Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified by Roman numerals I through III.

Offerors shall examine each part and provide the requested information in order to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

If the offeror is an educational institution, Part II does not apply unless the contemplated contract will be subject to full or modified CAS coverage pursuant to 48 CFR 9903.201-2(c)(5) or 9903.201-2(c)(6), respectively.

I. Disclosure Statement - Cost Accounting Practices and Certification

(a) Any contract in excess of the lower CAS threshold specified in Federal Acquisition Regulation (FAR) 30.201-4(b) resulting from this solicitation will be subject to the requirements of the Cost Accounting Standards Board (48 CFR chapter 99), except for those contracts which are exempt as specified in 48 CFR 9903.201-1.

(b) Any offeror submitting a proposal which, if accepted, will result in a contract subject to the requirements of 48 CFR chapter 99 must, as a condition of contracting, submit a Disclosure Statement as required by 48 CFR 9903.202. When required, the Disclosure Statement must be submitted as a part of the offeror's proposal under this solicitation unless the offeror has already submitted a Disclosure Statement disclosing the practices used in connection with the pricing of this proposal. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of Part I of this provision.

CAUTION: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement shall not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing proposals or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

[ ] (1) *Certificate of Concurrent Submission of Disclosure Statement*. The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows: (i) original and one copy to the cognizant Administrative Contracting Officer (ACO) or cognizant Federal agency official authorized to act in that capacity (Federal official), as applicable, and (ii) one copy to the cognizant Federal auditor.

(Disclosure must be on Form No. CASB DS-1 or CASB DS-2, as applicable. Forms may be obtained from the cognizant ACO or Federal official.)

Date of Disclosure Statement: [ ]

Name and Address of Cognizant ACO or Federal Official Where Filed: [ ]

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the Disclosure Statement.

[ ] (2) *Certificate of Previously Submitted Disclosure Statement*. The offeror hereby certifies that the required Disclosure Statement was filed as follows:

Date of Disclosure Statement: [ ]

Name and Address of Cognizant ACO or Federal Official Where Filed: [ ]

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the applicable Disclosure Statement.

[ ] (3) *Certificate of Monetary Exemption*. The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and subcontracts subject to CAS totaling $50 million or more in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

[ ] (4) *Certificate of Interim Exemption*. The offeror hereby certifies that (i) the offeror first exceeded the monetary exemption for disclosure, as defined in (3) of this subsection, in the cost accounting period immediately preceding

the period in which this offer was submitted and (ii) in accordance with 48 CFR 9903.202-1, the offeror is not yet required to submit a Disclosure Statement. The offeror further certifies that if an award resulting from this proposal has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under subparagraph (c)(1) or (c)(2) of Part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

CAUTION: Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of $50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with proposals submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

II. Cost Accounting Standards - Eligibility for Modified Contract Coverage

If the offeror is eligible to use the modified provisions of 48 CFR 9903.201-2(b) and elects to do so, the offeror shall indicate by checking the box below. Checking the box below shall mean that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

[ ] The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of 48 CFR 9903.201-2(b) and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost accounting period immediately preceding the period in which this proposal was submitted, the offeror received less than $50 million in awards of CAS-covered prime contracts and subcontracts. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

CAUTION: An offeror may not claim the above eligibility for modified contract coverage if this proposal is expected to result in the award of a CAS-covered contract of $50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of $50 million or more.

III. Additional Cost Accounting Standards Applicable to Existing Contracts

The offeror shall indicate below whether award of the contemplated contract would, in accordance with subparagraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts.

[ ]Yes[ ]No

(End of provision)

K.8 52.230-7 PROPOSAL DISCLOSURE--COST ACCOUNTING PRACTICE CHANGES. (APR 2005)

K.9 252.203-7005 REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS. (SEP 2022)

K.10 252.204-7007 ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS. (MAY 2021)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at FAR 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

[X] (i) Paragraph (e) applies.

[ ] (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of $150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations when contract performance will be in Spain.

(viii) 252.247-7022, Representation of Extent of Transportation by Sea. Applies to all solicitations except those for direct purchase of ocean transportation services or those with an anticipated value at or below the simplified acquisition threshold.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: (*Contracting Officer check as appropriate*.)

[ ] (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

[ ] (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

[ ] (iii) 252.225-7020, Trade Agreements Certificate.

[ ] Use with Alternate I.

[ ] (iv) 252.225-7031, Secondary Arab Boycott of Israel.

[ ] (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

[ ] Use with Alternate I.

[ ] Use with Alternate II.

[ ] Use with Alternate III.

[ ] Use with Alternate IV.

[ ] Use with Alternate V.

[ ] (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

[ ] (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at *https://www.acquisition.gov/*. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*Offeror to insert changes, identifying change by provision number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.	**Title**	**Date**	**Change**
[ ]	[ ]	[ ]	[ ]

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

K.11 252.204-7008 COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS. (OCT 2016)

K.12 252.204-7016 COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION. (DEC 2019)

(a) *Definitions*. As used in this provision, *covered defense telecommunications equipment or services* has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (*https://www.sam.gov*) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation*. The Offeror represents that it [ ] does, [ ] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

K.13 252.204-7017 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION. (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it

"does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions. Covered defense telecommunications equipment or services, covered mission, critical technology*, and *substantial or essential component*, as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition*. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at *https://www.sam.gov* for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation*. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [ ] will [ ] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures*. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

K.14 252.219-7000 ADVANCING SMALL BUSINESS GROWTH. (JUN 2023)

K.15 252.225-7003 REPORT OF INTENDED PERFORMANCE OUTSIDE THE UNITED STATES AND CANADA-SUBMISSION WITH OFFER. (OCT 2020)

K.16 252.225-7055 REPRESENTATION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME. (MAY 2022)

K.17 252.225-7057 PREAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA. (AUG 2022)

K.18 252.225-7059 PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION-REPRESENTATION. (JUN 2023)

K.19 252.227-7017 IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS. (JAN 2023)

(a) The terms used in this provision are defined in the following clause or clauses contained in this solicitation:

(1) If a successful offeror will be required to deliver technical data, the Rights in Technical Data-Other Than Commercial Products and Commercial Services clause, or, if this solicitation contemplates a contract under the Small Business Innovation Research Program, the Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research (SBIR) Program clause.

(2) If a successful offeror will not be required to deliver technical data, the Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation clause, or, if this solicitation contemplates a contract under the Small Business Innovation Research Program, the Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research (SBIR) Program clause.

(b) The identification and assertion requirements in this provision apply only to technical data, including computer software documents, or computer software to be delivered with other than unlimited rights. For contracts to be awarded under the Small Business Innovation Research Program, the notification requirements do not apply to technical data or computer software that will be generated under the resulting contract. Notification and identification is not required for restrictions based solely on copyright.

(c) Offers submitted in response to this solicitation shall identify, to the extent known at the time an offer is submitted to the Government, the technical data or computer software that the Offeror, its subcontractors or suppliers, or potential subcontractors or suppliers, assert should be furnished to the Government with restrictions on use, release, or disclosure.

(d) The Offeror's assertions, including the assertions of its subcontractors or suppliers or potential subcontractors or suppliers shall be submitted as an attachment to its offer in the following format, dated and signed by an official authorized to contractually obligate the Offeror:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software

The Offeror asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted:

Technical Data or Computer Software to be Furnished With Restrictions*	**Basis for Assertion****	**Asserted Rights Category*****	**Name of Person Asserting Restrictions******
[ ]	[ ]	[ ]	[ ]

*For technical data (other than computer software documentation) pertaining to items, components, or processes developed at private expense, identify both the deliverable technical data and each such items, component, or process. For computer software or computer software documentation identify the software or documentation.

**Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions. For technical data, other than computer software documentation, development refers to development of the item, component, or process to which the data pertain. The Government's rights in computer software documentation generally may not be restricted. For computer software, development refers to the software. Indicate whether development was accomplished exclusively or partially at private expense. If development was not accomplished at private expense, or for computer software documentation, enter the specific basis for asserting restrictions.

***Enter asserted rights category (e.g., government purpose license rights from a prior contract, rights in SBIR data generated under another contract, limited, restricted, or government purpose rights under this or a prior contract, or specially negotiated licenses).

****Corporation, individual, or other person, as appropriate.

*****Enter "none" when all data or software will be submitted without restrictions.

Date _____

Printed Name and Title _____

Signature _____

(End of identification and assertion)

(e) An offeror's failure to submit, complete, or sign the notification and identification required by paragraph (d) of this provision with its offer may render the offer ineligible for award.

(f) If the Offeror is awarded a contract, the assertions identified in paragraph (d) of this provision shall be listed in an attachment to that contract. Upon request by the Contracting Officer, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate any listed assertion.

(End of provision)

K.20 252.227-7028 TECHNICAL DATA OR COMPUTER SOFTWARE PREVIOUSLY DELIVERED TO THE GOVERNMENT. (JUN 1995)

K.21 252.239-7009 REPRESENTATION OF USE OF CLOUD COMPUTING. (SEP 2015)

K.22 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (DEVIATION 2023-O0002)

Effective December 19, 2022, insert the provision in solicitations exceeding the micro-purchase threshold when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied this part in accordance with 19.000(b)(1)(ii).

(a) Use the provision with its Alternate I in solicitations issued by DoD, NASA, or the Coast Guard.

(b) Use the provision with its Alternate II in solicitations that will result in a multiple-award contract with more than one NAICS code assigned. This is authorized for solicitations issued after October 1, 2025 (see 19.102(b)).

Small Business Program Representations (DEVIATION 2023-O0002) (DEC 2022)

(a) Definitions. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations

of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business concern-

(1) Means a small business concern-

(i) Not less than 51 percent of which is owned by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran.

(2) "Service-disabled veteran" means a veteran, as defined in 38 U.S.C.101(2), with a disability that is service-connected, as defined in 38 U.S.C.101(16).

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1002, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding $850,000 after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C.101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is _____ [insert NAICS code].

(2) The small business size standard is _____ [insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations. (1) The offeror represents as part of its offer that—

(i) It □ is, □ is not a small business concern; or

(ii) It □ is, □ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it □ is, □ is not, a small disadvantaged business concern as defined in 13 CFR 124.1002.

(3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it □ is, □ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it □ is, □ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it □ is, □ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(6) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it □ is, □ is not a veteran-owned small business concern.

(7) [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that

(i) It □ is, □ is not a service-disabled veteran-owned small business concern; or

(ii) It □ is, □ is not a service-disabled veteran-owned joint venture that complies with the requirements of 13 CFR 125.18(b)(1) and (2). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.] Each service-disabled veteran-owned small business concern participating in the joint venture shall provide representation of its service-disabled veteran-owned small business concern status.

(8) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It □ is, □ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It □ is, □ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Notice. Under 15 U.S.C.645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall-

(1) Be punished by imposition of fine, imprisonment, or both;

(2) Be subject to administrative remedies, including suspension and debarment; and

(3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

Alternate I (SEP 2015). As prescribed in 19.309(a)(2), add the following paragraph (c)(9) to the basic provision:

(c)(9) [Complete if offeror represented itself as disadvantaged in paragraph (c)(2) of this provision.] The offeror shall check the category in which its ownership falls:

__Black American.

__Hispanic American.

__Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).

__Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).

__Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).

__ Individual/concern, other than one of the preceding.

Alternate II (SEP 2021). As prescribed in 19.309(a)(3), substitute the following paragraphs (b) and (c)(1) for paragraphs (b) and (c)(1) of the basic provision:

(b)(1) The North American Industry Classification System (NAICS) codes and corresponding size standards for this acquisition are as follows; the categories or portions these NAICS codes are assigned to are specified elsewhere in the solicitation:

NAICS code Size standard

_____ _____

_____ _____

_____ _____

[Contracting Officer to insert NAICS codes and size standards].

(2) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees if the acquisition

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations. (1) The Offeror shall represent its small business size status for each one of the NAICS codes assigned to this acquisition under which it is submitting an offer.

NAICS code Small business

concern

(yes/no)

_____ _____

_____ _____

_____ _____

[Contracting Officer to insert NAICS codes.]

SECTION L - Instructions, Conditions, and Notices to Bidders

L.1 Instructions, Conditions, and Notices to Bidders

L.2 52.204-7 SYSTEM FOR AWARD MANAGEMENT. (OCT 2018)

L.3 52.204-16 COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING. (AUG 2020)

L.4 52.215-1 INSTRUCTIONS TO OFFERORS - COMPETITIVE ACQUISITION. (NOV 2021)

L.5 52.215-16 FACILITIES CAPITAL COST OF MONEY. (JUN 2003)

L.6 52.215-20 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN COST OR PRICING DATA. (OCT 2010) - ALTERNATE IV (OCT 2010)

(a) Submission of certified cost or pricing data is not required.

(b) Provide data described below: See details specified in the solicitation. .

(End of provision)

L.7 52.215-22 LIMITATIONS ON PASS-THROUGH CHARGES--IDENTIFICATION OF SUBCONTRACT EFFORT. (OCT 2009)

L.8 52.216-1 TYPE OF CONTRACT. (APR 1984)

The Government contemplates award of a single hybrid Firm Fixed Price (FFP), Labor Hour (LH), and Cost Reimbursable-No Fee (CR) Indefinite Delivery Indefinite Quantity (IDIQ) contract resulting from this solicitation.

(End of provision)

L.9 52.216-29 TIME-AND-MATERIALS/LABOR-HOUR PROPOSAL REQUIREMENTS--OTHER THAN COMMERCIAL ACQUISITION WITH ADEQUATE PRICE COMPETITION. (NOV 2021)

L.10 52.222-24 PREAWARD ON-SITE EQUAL OPPORTUNITY COMPLIANCE EVALUATION. (FEB 1999)

L.11 52.222-46 EVALUATION OF COMPENSATION FOR PROFESSIONAL EMPLOYEES. (FEB 1993)

L.12 52.222-56 CERTIFICATION REGARDING TRAFFICKING IN PERSONS COMPLIANCE PLAN. (OCT 2020)

L.13 52.233-2 SERVICE OF PROTEST. (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Jimmy Ober (Contracting Officer) (jimmy.c.ober@nga.mil).

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

L.14 52.237-1 SITE VISIT. (APR 1984)

L.15 52.237-10 IDENTIFICATION OF UNCOMPENSATED OVERTIME. (MAR 2015)

L.16 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by

paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): www.acquisition.gov

(End of provision)

L.17 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS. (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR chapter 1) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement (48 CFR chapter 2) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of provision)

L.18 252.204-7019 NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS. (MAR 2022)

L.19 252.215-7008 ONLY ONE OFFER. (DEC 2022)

(a) *Cost or pricing data requirements*. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts*. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

L.20 252.215-7010 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA. (JAN 2023)

L.21 252.215-7013 SUPPLIES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS. (JAN 2023)

L.22 252.216-7002 ALTERNATE A, TIME-AND-MATERIALS/LABOR-HOUR PROPOSAL REQUIREMENTS-OTHER THAN COMMERCIAL ACQUISITION WITH ADEQUATE PRICE COMPETITION. (JAN 2023)

L.23 252.239-7017 NOTICE OF SUPPLY CHAIN RISK. (DEC 2022)

L.24 252.215-7016 NOTIFICATION TO OFFERORS - POSTAWARD DEBRIEFINGS (MAR 2022)

NOTIFICATION TO OFFERORS-POSTAWARD DEBRIEFINGS (MAR 2022)

(a) Definition. As used in this provision-

“ Nontraditional defense contractor” means an entity that is not currently performing and has not performed any contract or subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement (10 U.S.C. 2302(9)).

(b) Postaward debriefing.

(1) Upon timely request, the Government will provide a written or oral postaward debriefing to successful or unsuccessful offerors for contract awards valued at $10 million or more, while protecting the confidential and proprietary information of other offerors. The request is considered timely if received within 3 days of notification of contract award.

(2) When required, the minimum postaward debriefing information will include the following:

(i) For contracts in excess of $10 million and not in excess of $100 million with a small business or

nontraditional defense contractor, an option for the small business or nontraditional defense contractor to request disclosure of the agency's written source selection decision document, redacted to protect the confidential and proprietary information of other offerors for the contract award. ·

(ii) For contracts in excess of $100 million, disclosure of the agency's written source selection decision document, redacted to protect the confidential and proprietary information of other offerors for the contract award.

(3) If a required postaward debriefing is provided-

(i) The debriefed Offeror may submit additional written questions related to the debriefing not later than 2 business days after the date of the debriefing;

(ii) The agency will respond in writing to timely submitted additional questions within 5 business days after receipt by the contracting officer; and

(iii) The postaward debriefing will not be considered to be concluded until the later of-

(A) The date that the postaward debriefing is delivered, orally or in writing; or

(B) If additional written questions related to the debriefing are timely received, the date the agency delivers its

written response.

(c) Contract performance. The Government may suspend performance of or terminate the awarded contract upon notice from the Government Accountability Office of a protest filed within the time periods listed in paragraphs (c)(1) through (3) of this provision, whichever is later:

(1) Within 10 days after the date of contract award.

(2) Within 5 days after a debriefing date offered to the protestor under a timely debriefing request in accordance with Federal Acquisition Regulation (FAR) 15.506 unless an earlier debriefing date is negotiated as a result.

(3) Within 5 days after a postaward debriefing under FAR 15.506 is concluded in accordance with Defense Federal Acquisition Regulation Supplement 215.506-70 (b).

(End of provision)

L.25 5X52.209-9004 USE OF CONTRACTOR SUPPORT (OCT 2009)

(a) The Government will use American Systems, Falcon Logic, Pardus Inc., and ManTech for facility support only. The Government will use Compass, Pardus Inc., and Best Value Technology Inc. (BVTI) for administrative, technical, and cost analysis support during source selection and during the term of any resulting contract. The exclusive responsibility for source selection will reside with the Government.

(b) Proprietary information submitted in response to this solicitation will be protected from unauthorized disclosure as required by Subsection 27 of the Office of Procurement Policy Act as amended (the Procurement Integrity Act)(41 U.S.C. 423) (hereinafter referred to as "the Act") as implemented in the FAR. The support contractors is/are bound contractually by the Protection of Information and Nondisclosure Agreements clause with respect to proprietary information. By submitting a proposal in response to this solicitation, the Contractor consents to the Government disclosing Contractor proprietary information to the aforementioned contractors for the purposes indicated.

(End of Provision)

See Section L Supplemental Instructions for additional information to Offerors.

SECTION M - Evaluation Factors for Award

M.1 Evaluation Factors for Award

M.2 52.217-5 EVALUATION OF OPTIONS. (JUL 1990)